



GOVERNMENT OF MAHARASHTRA

***THE BOMBAY CANAL RULES, 1934**

**THE BOMBAY IRRIGATION RECORD OF
RIGHTS RULES, 1918**

**THE BOMBAY CONSTRUCTION OF WATER
COURSES RULES, 1968**

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THE BOMBAY CANAL RULES, 1934

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Amended by G. N., P. W. D., No. 2353/27, dated 26th February 1934.

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Amended by G. N., P. W. D., No. BLM-1053, dated 19th March 1954.

Amended by G. N., P. W. D., No. SGF-3854-T, dated 20th August 1956.

Amended by G. N., P. W. D., No. BCL-1058-T, dated 14th October 1959.
(B. G., Pt. IV-B, p. 1504).

Amended by G. N., P. W. D., No. BCL-1058-T, dated 15th December 1959
(B. G., Pt. IV-B, p. 76).

Amended by G. N., P. W. D., No. BLM-1059-T, dated 1st April 1960
(B. G., Pt. IV-B, p. 514).

Amended by G., N., I. & P. D., No. BCL-1060-I(4), dated 15th December 1961
(M. G., Pt. IV-B, 1962, p. 13).

In exercise of the powers conferred by S. 70 of the Bombay Irrigation Act, 1879 (Bom. VII of 1879), and in supersession of Government Notification in the Public Works Department, No. 1556, dated the 19th December 1922, the Governor in Council is pleased to make the following rules for the administration of canals in the State of Bombay with effect from the 15th February 1934, namely :—

PART I

PRELIMINARY

1. *Short title.*—These rules may be called the Bombay Canal Rules, 1934.
2. *Definition.*—In these rules unless there be something repugnant in the subject or context,—
 - (a) "The Act" means the Bombay Irrigation Act, 1879;
 - (b) "Block" means the whole area of certain specified land to which the block system is applied;

- (c) "Block conditions" means the special conditions prescribing, regulating or restricting the irrigated cultivation which may be carried on within a block ;
- (d) "Block period" means the period for which a supply of water is sanctioned under the block system ;
- (e) "Block rate" means a fixed uniform annual rate per acre levied for the supply of water to a block ;
- (f) "Block system" means a system under which a supply of water is provided for carrying on irrigated cultivation under certain conditions throughout a block for a period of years ;
- (g) "Cold weather season" means the period in the districts of Ahmedabad, Kaira, Broach and Panch Mahals and Surat, from the 16th November and elsewhere from the 15th October till the 14th February ensuing ;
- (h) "Executive Engineer" means the Executive Engineer in charge of Irrigation in any area and includes any officer duly empowered in that behalf ;
- (i) "Form" means a form prescribe by these rules ;
- (j) "Fruit block" means a block in which the irrigation of long-term fruit trees is permitted ;
- (k) "Garden block" means a block in which the irrigation, throughout the year, of crops other than sugarcane, pan or long-term trees is permitted ;
- (l) "Hot weather crop" means a crop grown within the period between the end of the cold weather season and the break of the monsoon season ;
- (m) "Hot weather season" means the period from the 15th February till the 14th June ensuing ;
- (n) "Kharif crop" means a crop grown within the period from the break of the monsoon season to the beginning of the cold weather season ;
- (o) "Monsoon season" means the period from the 15th June till the 15th November ensuing in the case of the districts of Ahmedabad, Kaira, Broach, [Panchmahals, Surat, Mehsana, Sabarkantha, Banaskantha and Baroda], and till the 14th October ensuing elsewhere ;
- (p) "Outlet" means an opening through which water passes from a Government canal, branch canal or distributary to a private water course ;
- (q) "Pass" means a written order issued to any person authorising him to receive a supply of water from a canal ;
- (r) "Perennial crop" means a crop which is irrigated continuously for a period of more than eight months ;
- (s) "Plot" means one of two or more portions into which a piece of land is divided for the purpose of irrigation, each of such portions being provided with a separate inlet for irrigation water ;
- (t) "Prescribed" means prescribed by these rules ;

- (u) "Rabi crop" means a crop grown within the period between the 15th September and the end of February next following ;
- (v) "Seasonal crop" means a crop which is sown, cultivated and reaped during a particular season of the year ;
- (w) "Section" means a section of the Act ;
- (x) "Sub-Divisional Officer" means the Sub-Divisional Officer, in charge of Irrigation in any area, subordinate to the Executive Engineer ;
- (y) "Sugarcane block" means a block in which the irrigation of sugarcane is permitted ;
- (z) "Superintending Engineer" means the Superintending Engineer in charge of Irrigation in any area ;
- (aa) "Two season block" means block in which irrigation during the monsoon and the cold weather season is permitted ;
- (bb) "Two season crop" means a crop the period of growth of which extends over the whole or part of both the monsoon and cold weather seasons ;
- (cc) "Unit" means one of two or more plots, each of a standard area, into which a piece of land is divided, such sub-division being maintained for a number of years ;
- (dd) "Unitized" means divided into units.
3. *Exemptions.*—The State Government may by notification in the *Bombay Government Gazette* exempt any canal from the operation of all or any of these rules.

PART II

SUPPLY OF WATER.

4. *Application under section 72 : how to be made.*—(1) Every application for a supply of water for the purpose of irrigation shall be made in duplicate to the Executive Engineer.
- (2) Such application may be delivered personally or sent by post to the Executive Engineer or to any officer authorised by him to receive it.
- (3) Such application shall be made, in the case of—
- (a) Two season blocks, in Form I ; [or where the State Government by Notification in the *Official Gazette*, so directs in the case of any two seasonal blocks, in Form I-A included in these Rules by Government Notification, Public Works Department, No. BLM-1053, dated 19th March 1954] ;
- (b) Sugarcane blocks in Form II or III according as the sugarcane area permitted to be grown in the block is to be limited to 1/3rd or 1/4th of the block area ;
- (c) Fruit blocks, in Form IV ;
- (d) Garden blocks, in Form V ;
- (e) Additional waterings, watering in Form VI ; and
- (f) Any other form of supply, in Form VII.

(4) Printed blank copies of the prescribed forms of applications shall be supplied to intending applicants free of charge ;

(5) An application for a supply of water for any purpose other than irrigation shall be made by a letter addressed to the Executive Engineer.

5. *Dates for applications.*—(1) The Executive Engineer shall, by notification published in a manner prescribed by the State Government by general or special order in this behalf, fix for each canal the date for submission of each of the prescribed applications. Any change in any of such date shall be notified not less than three months in advance : Provided that if in any year a change is deemed to be advisable on account of unforeseen seasonal or economic conditions or changes in administrative arrangements, a later date may be fixed without such three months' previous notification.

(2) Every application for a supply of water for the purpose of irrigation shall be made in the form prescribed on or before the date fixed under sub-rule (1) for the submission of such applications ;

Provided that if an application is received after such date and the Executive Engineer is satisfied that the delay was unintentional and due to causes beyond the control of the applicant, he may treat such application as if it had been received on the due date :

Provide further that if it appears to the Executive Engineer that a supply of water will be available after all applications received before such date have been disposed of, he may receive applications up to any later date.

6. *Acknowledgment of applications.*—When an application for a supply of water is personally delivered the counterfoil receipt for applications attached to the duplicate form shall be initialled and dated by the officer receiving such application and handed back to the person from whom such application is received. In other cases, the counterfoil shall be similarly initialled and dated and shall be despatched to the applicant as soon as may be practicable after the application is received.

7. *Application by whom to be made : conditions for sanction.*—(1) An application for a supply of water for the irrigation of land for any period may be sanctioned in favour of—

(a) the occupant or joint occupants of the land, or

(b) the superior holder or joint superior holders of alienated land, or

(c) any other person or persons having a right to cultivate the land under irrigation for the period for which supply of water is to be given, or

(d) any other person duly authorised by any of the persons mentioned in clauses (a), (b) and (c) to receive such supply.

(2) An application made by a person having neither such interest in the land as is mentioned in clauses (a), (b) and (c) of sub-rule (1) nor such authority as is mentioned in clause (d) of the said sub-rule may be summarily rejected by the Executive Engineer.

(3) An application made by a person other than the occupant or superior holder shall not be sanctioned unless such applicant furnishes suitable security for the payment of water-rates or other charges which may become payable in respect of any obligation arising out of the sanction of such application, by the execution either of a bond in Form VIII with two sureties to be approved by the officer sanctioning the application or of a mortgage bond in Form IX. In the case of a person who is a member of a co-operative society as defined in the Bombay Co-operative Societies

Act, 1925 and who has taken a loan from such society under section 24-AA thereof and has made a declaration in respect of his land in the manner required by clause (i) or (ii) of that section, the execution of a mortgage bond, if any, shall be made in Form IX-A.

(4) When an application is made by the occupant or superior holder, the Executive Engineer may, if he considers that security is necessary, require, by an order in writing, such applicant to furnish similar security as is described in sub-rule (3).

(5) When an application is made by a person other than the occupant or superior holder, the Executive Engineer may refuse to sanction such application unless the consent of the occupant or superior holder has been obtained by the applicant. If the consent of any other person having an interest in the land as mortgagee or otherwise appears to the Executive Engineer to be necessary to ensure that all obligations arising out of the sanction of such application will be carried out he may require such consent also to be obtained by the applicant.

8. *Applications may be rejected or complied with wholly or in part—Manner of sanction : Approval.*—(1) The Executive Engineer may reject the application for a supply of water or sanction the supply applied for wholly or in part or with modifications.

(2) Subject to such orders as the State Government may from time to time issue, the Executive Engineer may refuse to sanction a supply of water for irrigation to any land under any of the forms prescribed in sub-rule (3) of rule 4 if such irrigation would, in his opinion lead to excessive or wasteful use of water, or cause, or contribute to cause, damage or injury to such land or any other land, or cause loss or injury to the cultivator of any other land, or be likely to produce conditions dangerous to public health.

(3) The Executive Engineer may refuse to sanction a supply of water for the cultivation of sugarcane to any land within a distance of 1 [10] feet from the boundary of any road, cart-track, open drain or well, if such supply would, in his opinion interfere with the use of, or cause damage to such road, cart-track, drain or well.

(4) The order passed under sub-rule (1), (2) or (3) shall be recorded on the application; the duplicate form of the application shall be endorsed with a copy of the order and delivered or despatched, as the case may be, to the applicant, if any supply is sanctioned the counterfoil attached to the original application shall be sent to the Talati or Patil of the village in which the land is situate.

(5) If the supply sanctioned is different from that applied for, the applicant may either withdraw his application, in which case the sanction given shall be cancelled or make a further application for a modification of the sanction. Such further application if sanctioned, shall not be deemed to be an application made after the prescribed date.

(6) If an applicant is in arrears of water rates which became due before the date of the application, the application may be summarily rejected or sanction may be given provisionally subject to the condition that such arrears are paid before a specified date prior to the commencement of supply.

(7) Sanction may be given provisionally subject to the conditions that all amounts which have become due on account of water rates before the commencement of supply shall be paid before such commencement of supply and that if such amounts are not paid the sanction shall be liable to cancellation.

(8) If the Executive Engineer has reason to doubt the authenticity of any signature or endorsement, or the truth or accuracy of any of the information furnished in an application, he may postpone the passing of orders until he has made such inquiries as he deems necessary in order to ascertain the facts. In such case, he shall record in writing his reason for postponing the passing of orders.

9. *Areas for which permission may be granted.*—(a) Separate sanction shall not be given for the supply of water to any land the total area of which is less than 20 gunthas.

(b) Water for irrigation shall not be supplied to any detached piece of land the area of which is less than 20 gunthas.

(c) Water for irrigation shall not be supplied to any separate piece of land unless the area applied for is an exact multiple of 20 gunthas.

(d) In the case of areas irrigated—

(i) under the block system on any canal, and

(ii) for crops other than kharif on—

(A) the Nira Left Bank Canal and Shetphal Tank,

(B) the Nira Right Bank Canal,

(C) the Godavari Canals,

(D) the Pravara Canals,

(E) the Mutha Canals,

(F) the Girna Canal,

water for irrigation shall not be supplied to any land unless it has been unitized into plots each of an area of 20 gunthas :

Provided that when an application has been made for a supply of water in respect of the applicant's whole holding on a channel and after unitisation a fragment of land is left over, which is too small to form a unit, water may be supplied to such fragment for crops other than sugarcane.

(e) Water shall not be supplied to any piece of land for irrigating more than two sugarcane crops during any period of five irrigation years.

10. *Allotment of available supply.*—If from any cause, any water supply is insufficient to meet all demands for water from such supply, questions regarding the allotment of the available supply and the quantity and regulation thereof shall be subject to the general or special orders of the State Government, to be determined by the Executive Engineer.

PART III

DEMARCATON AND PREPARATION FOR IRRIGATION

11. *Construction and maintenance of bunds and demarcation and preparation of land.*—(1) In each separate area of land for the irrigation of which sanction has been obtained,—

(i) the portion under irrigation shall, throughout the period of irrigation, be completely surrounded by bunds not less than 1 foot high and of 1 foot top width and shall be formed into suitable plots; and

(ii) each plot shall be completely surrounded by bunds in accordance with the following provisions, namely :—

(a) Round each separate and continuous area on which sugarcane is under cultivation bunds no less than $1\frac{1}{2}$ feet high by $1\frac{1}{2}$ feet top width shall be constructed :

Provided that if, on account of the slope of the land and the total area included within the outer bund, the Executive Engineer directs that the bund at the lower end of the area and on each side for a distance up to 66 feet from the lower bund shall be of two feet top width such direction shall be, complied with :

Provided further that for similar reasons the Executive Engineer may allow the bund at the upper end of a sloping field to be of smaller dimensions.

(b) Round each plot in an area on which sugarcane is under cultivation bunds not less than 9 inches high by 1 foot top width shall be constructed :

Provided that when the Executive Engineer is satisfied that on account the configuration of the land and the manner in which it has been repaired and levelled, bunds of these dimensions are unnecessary, he may permit the construction of bunds of such smaller dimensions as he may consider adequate.

(c) Round each plot in which any other crop, except long term fruit trees (when each tree is separately irrigated) or kharif crop, is under cultivation bunds not less than 6 inches high by 9 inches top width shall be constructed.

(d) All bunds shall have slopes on both sides of 1 : 1.

(e) On any common boundary between two areas irrigated under separate sanctions, two separate bunds need not be maintained.

(f) When any special conditions are prescribed in any sanction given for the irrigation of any land, such land shall be demarcated and prepared in accordance with such prescribed conditions, and the provisions of this sub-rule shall not apply thereto.

(2) The Executive Engineer may withhold the first supply of water to any area in which the provisions of sub-rule (1) are not complied with.

(3) The application of water to land which is not prepared and maintained in accordance with sub-rule (1) shall constitute misuse of water within the meaning of clause (d) of section 28.

PART IV

CULTIVATION AND USE OF WATER

12. *Cultivation and use of water.*—The following provisions in respect of cultivation and use of water shall be observed :—

(1) A suitable system of water channels shall be so maintained that the water required for the irrigation of any plot can be supplied directly from a channel.

(2) The number and location of the inlets necessary for the supply of water to any such system shall be subject to the general or special orders of the Executive Engineer.

(3) No irrigation water shall be allowed to pass from one plot to another plot.

(4) The order in which water is supplied shall be subject to the general or special orders of the Executive Engineer.

(5) No crop shall be grown in the channels leading to the plots when such channels are less than 4 feet wide from the top inner edge of the bund and after earthing up there shall be no cane growing in or interfering with the flow of water in the channels.

(6) No crop shall be planted within 6 feet of the edge of a main water-course. If a question arises as to what is a main water-course, the Executive Engineer shall decide the matter and his decision shall be final and conclusive.

(7) No crop shall be grown on the top of any bund. A subsidiary crop may however, be grown along the slopes of the bund provided the growth of such subsidiary crop does not interfere with inspection.

(8) (a) Any bund may, immediately after rain, be cut without permission. Such bund shall, however, be properly repaired before the next watering is taken.

(b) Except as provided in clause (a) a bund may be cut only in case of emergency; and if the person on whose application the supply of water is sanctioned under these rules cuts the bund, he shall be liable for any wastage of water unless he shows to the satisfaction of the Executive Engineer that the accumulation of water, if any, was due to causes for which he was not responsible.

(9) The person on whose application the supply of water is sanctioned under these rules or his servant shall be present during the whole time that water is being taken and if a pass has been issued, such person shall have it in his possession.

PART V

WATER RATES

13. *Water rates when payable.*—The dates in each year for payment of water rates shall, subject to orders passed by the State Government under section 57, ordinarily be—

For rabi crops April 15th.

For all other crops February 14th.

14. *Water rates how to be fixed.*—The rates, determined by the State Government under section 44, for canal water supplied for purposes of irrigation shall, in the absence of a special agreement or contract, ordinarily be levied in the form of—

(a) a rate per acre of land irrigated, fixed with reference to the crops grown, the season of the year during which and the period for which, water is supplied and the method of application of water to the land, or

(b) a rate per unit of quantity of water supplied.

15. *Areas on which water rates are leviable.*—(1) Water rates shall be levied on an unit of 20 gunthas or on a multiple thereof;

Provided that when water is supplied to an area which is less than or is not a multiple of 20 gunthas, the rates for the supply of water to the area less than 20 gunthas or to the residue of any area over a multiple of 20 gunthas shall, up to 10 gunthas, be levied as for a supply to an unit of 10 gunthas and, exceeding 10 gunthas, as for a supply to an unit of 20 gunthas.

(2) Water rates shall be payable on the whole area in respect of which sanction to supply has been given whether water is actually taken or not provided always that water for such supply was available.

16. *Water rate leviable when mixed crops are grown.*—If mixed crops are grown in any part of a plot for any period, the water rate fixed for the highest rated crop so grown shall be charged for the whole plot for the whole period with respect to which such rate is leviable.

17. *Water rate leviable when crop sanctioned is not planted or fails and another crop is grown.*—When the sanctioned crop is not grown, or if grown fails, another crop may be sown in the same area; and, provided water is available, water shall be given to such second crop to the date up to which water would have been given to the crop sanctioned. No additional charge shall be levied if intimation shall have been given to the Executive Engineer in writing within eight days of planting the fresh crop and if the second crop is assessable at the same or a lower rate than the sanctioned crop. If no such notice shall have been given, the irrigation of the second crop may be treated as unauthorised.

18. *Water rate leviable when land intended to be irrigated by canal water is irrigated partly by well water.*—If a portion of any land for the irrigation of which a supply of canal water has been sanctioned is irrigated by well water for a part of the season owing to a deficiency in the supply of canal water, and the applicant notifies the fact in writing to the Executive Engineer within eight days from the date on which he began taking well water, enquiry shall be made by the Executive Engineer as to whether the use of well water was necessary and if it be shown to the satisfaction of the Executive Engineer that the use of well water was necessary the rate chargeable on the portion irrigated by well water may, at the discretion of the Executive Engineer, be reduced to an amount which shall not be less than half the rate otherwise payable.

19. *Water rate leviable when well water and canal water are conveyed in the same channel.*—If well water is conveyed to any land in any channel used for conveying canal water, water rate shall be chargeable on the whole of the land irrigated from such channel: Provided that if well water be taken for a part of the season owing to a deficiency in the supply of canal water and the applicant notifies the fact in writing to the Executive Engineer within eight days from the date on which he began taking well water and if it be shown to the satisfaction of the Executive Engineer that such deficiency existed the rate on the portion irrigated by well water may, at the discretion of the Executive Engineer, be reduced to an amount which shall not be less than half the rate otherwise payable.

20. *Irrigation from escape channels, percolations and leakages.*—Irrigation from escape channels and from percolation and leakage falling under section 48 shall be subject to the same provisions as irrigation from other parts of a canal.

21. *Water rate leviable for supply of water for forming threshing floors.*—The Executive Engineer may give water for the purpose of forming threshing floors free to any person to whom a supply of water for irrigation has been sanctioned under these rules and to any other person at a charge per floor not exceeding half the lowest acre rate.

22. *Water rates for non-irrigational purposes.*—Water supplied from a canal for any purpose other than irrigation shall be charged for at such rate per unit of volume of water supplied as the State Government shall from time to time by order direct. Where the amount of water supplied cannot be measured the supply shall be charged for in such manner as the State Government may by order direct in each case.

OCCASIONAL RATES

23. *Water rate leviable for supply of water obtained without permission or misused.*—If a supply of water is obtained by any person from a canal, whether for irrigation or for any other purpose, without the previous permission of the Executive Engineer or is used in any other unauthorised manner for irrigation or otherwise, the Executive Engineer may, on each occasion, charge a rate not exceeding treble the rate chargeable for the supply as if such supply had been sanctioned. Such rate shall be leviable in addition to any penalty which may be imposed under the Act.

24. *Water rate leviable on late applications.*—When an application for supply of water presented after the prescribed date is sanctioned, the water rate charged for the supply for the first irrigation period shall, when such supply is for the growth of sugarcane, be 25 per cent. more than the ordinary rate and, when such supply is for the growth of any other crop, be 50 per cent. more than the ordinary rate :

Provided that the Executive Engineer may, if he is satisfied that an application could not be submitted on or before the prescribed date and after recording his reason in writing, order any lower rate not less than the ordinary rate to be charged in the case of any such applicant or any class of such applicants.

25. *Water rate leviable for water used for the irrigation of an area in excess of the sanctioned area.*—When sanction has been given to irrigate a specified area and the applicant irrigates an area in excess of such specified area, the Executive Engineer may charge in respect of such excess area a rate not exceeding treble the rate chargeable for the supply as if the supply had been sanctioned for such excess area and may stop the supply of water under clause (d) of section 28 :

Provided that if the Executive Engineer is satisfied that the excess area was irrigated through a *bona fide* mistake, no charge shall be made in respect of the following excesses :—

Excess of 1 guntha when water-supply has been sanctioned for an area of $1\frac{1}{2}$ acres or less.

Excess of 2 gunthas when water-supply has been sanctioned for an area of $1\frac{1}{2}$ to $4\frac{1}{2}$ acres.

Excess of 3 gunthas when water-supply has been sanctioned for an area of $4\frac{1}{2}$ to 9 acres.

Excess of 4 gunthas when water-supply has been sanctioned for an area of 9 to 15 acres.

Excess of 5 gunthas when water-supply has been sanctioned for an area of more than 15 acres.

26. *Charges to be imposed when water supplied through a water course is suffered to run to waste.*—When water supplied through a water-course is suffered to run to waste, the Executive Engineer may, under section 46, charge—

(a) if the water has flowed on any land, a rate not exceeding double the single watering rate for each acre on which water has flowed, and

(b) in any other case a rate not exceeding double the rate chargeable under rule 22, on the volume of water estimated by the Executive Engineer to have been wasted.

EXEMPTIONS, CANCELLATIONS AND REMISSIONS

Exemption of blocks from water rates and cancellation of blocks

27. *Exemptions from water rates in respect of blocks.*—(1) In the case of lands under the block system if in any particular year, an applicant is unable to irrigate the whole or any part of the block for which water has been sanctioned he may be granted exemption from the water rates payable in respect of the whole or part of the block remaining unirrigated, as the case may be, on his applying for such exemption in Form X before the rates specified below :—

- | | |
|---|---|
| (i) For the first year of the block period. | Within one month from the date of sanction. |
| (ii) For subsequent years of the block period— | |
| (a) In respect of sugarcane, fruit and garden blocks. | Before 15th November preceding the year beginning from February 15 for which exemption is required. |
| (b) In respect of two season blocks. | Before 15th September preceding the cold weather season for which exemption is required : |

Provided that in the case of sugarcane blocks the proportion of sugarcane to other crops is not thereby increased :

1-[Provided further that such exemption shall not be granted for more than two times in a sanctioned block period.]

Cancellation of blocks.—(2) A block may be cancelled at the request of the person on whose application the supply is sanctioned—

(a) from the beginning of the first year of the block period if the applicant applies for cancellation within one month from the date of sanction ;

(b) during the remaining block period if the applicant gives notice of cancellation in writing before the 5th November preceding the year beginning from February 15 from which the block is not required in respect of sugarcane, fruit and garden blocks and before 15th September in respect of two season blocks :

Provided that the Executive Engineer may at any time after giving twelve months' notice cancel any block or any part of a block if in his opinion further continuance of supply of water to it is objectionable.

Subsequent permission after exemption under sub-rule (1).—(3) When exemption from water rate is granted in accordance with sub-rule (1), subsequent permission to irrigate the whole or part of the block area so exempted shall, if water is available be given at $1\frac{1}{4}$ times the block rate in the case of sugarcane blocks, at $1\frac{1}{2}$ times, the rate prescribed for the cold weather season in the case of two season blocks and at $1\frac{1}{4}$ times the rates prescribed for the cold weather and hot weather season, in respect of fruit and garden blocks :

Provided that in the case of sugarcane blocks if an applicant subsequently desires and applies in Form VI before the date fixed under sub-rule (1) of rule 5 to irrigate seasonal or two season crops in the exempted area, permission may be granted at the sanctioned rates.

1-Added by G. N. of 15-12-1961.

No further supply to a cancelled block.—(4) When a sugarcane block is cancelled at the request of the person on whose application the supply was sanctioned a further supply of water for the irrigation of sugarcane within the area of the cancelled block shall not be sanctioned within a period of one year from the date of such cancellation.

Exemption from water rates in respect of lands not under block system.—(5) In respect of lands not under the block system no exemption from water rates shall be granted after an application for water in Form VII has been sanctioned for any crop other than perennial crops. Perennial crops may, however, be exempted from payment of water rates provided the applicant gives within one month from the date of sanction a written intimation to the Executive Engineer that water is not required.

28. *Remission of water rates.*—Remission of the whole or a part of the water rate payable by any person in respect of the supply of water for the purpose of irrigation to any land may be granted where such person has suffered loss—

(a) from any stoppage, diminution or increase of his water supply due to any of the causes named in clause (d) of the proviso to section 31 or to any act or omission of a canal officer not provided for in the said clause ; or

(b) from failure of his crops due to any local or general calamity :

Provided the outturn of the crops is not more than one quarter of normal.

29. *Claims for remission under rule 28.*—(1) Every claim for remission of water rate under rule 28 shall be preferred in writing direct to the Executive Engineer within one month from the time when the damage or failure, in respect of which the remission is claimed, is alleged to have occurred. Any claim preferred after the said period of one month may be summarily rejected.

(2) If, without giving the Executive Engineer at least 8 days' notice in writing of his intention so to do, the claimant cuts the crops alleged to have been damaged or to have failed at any time within 20 days after preferring his claim for remission, his claim may be summarily rejected.

30. *Readings maintained of water gauges and meters by the Irrigation Department to be accepted as authoritative.*—In cases of dispute regarding water supply or remission or exemption from water rate, the water gauges and meters maintained by the Irrigation Department shall, if certified by the Executive Engineer to have been in good order during the period to which the dispute relates, be held to furnish authoritative data for all calculations of discharge.

PART VI

EMERGENCY RULES

31. *List of labourers : when to be prepared.*—Whenever it appears to a Canal Officer duly empowered to act under section 58, that circumstances may probably arise which will render it necessary for the provisions of that section to be put into operation, for the execution of any repair, clearance or other work which is being or is about to be carried on by the Irrigation Department, he shall communicate with the Collector. The Collector shall thereupon cause a list to be prepared of able-bodied persons liable to be required to assist under section 58. Such list may from time to time be revised and amended.

32. *Area for which list of labourers should be prepared.*—Every list of labourers prepared under rule 31 shall subject, to the next following rule, include the names of persons holding land or resident within such distance from the locality, of the repair, clearance or work as the Collector, having regard to the number of persons likely to be required to assist at such repair, clearance or work, shall think proper.

33. *Classes of persons to be included in or exempted from list of labourers.*—Every list of labourers prepared under rule 31 shall contain the name of every able-bodied landholder holding land within the area fixed by the Collector under the last preceding rule and of every able-bodied man or woman who resides within such area and earns his or her livelihood by manual labour :

Provided that—

(a) the names of Indian soldiers, reservists and military pensioners and of persons who appear to the Collector to be under sixteen years or over fifty years of age shall not be included in such list, and

(b) any landholder who is unaccustomed to manual labour shall be permitted when called to assist at any repair, clearance or work, to furnish as a substitute any able-bodied person whose name is not on the list.

34. *Publication of list of labourers.*—The Collector shall cause the names of the persons holding land or resident in any village within the area fixed under rule 32 and included in a list of labourers to be posted in the chavdi or in some other public building in such village, and to be proclaimed in the village by beat of drum.

35. *Hearing of objections.*—Any person whose name is entered in a list of labourers may apply in writing to the Collector to have his name removed therefrom. The Collector, after such inquiry (if any) as he thinks necessary, shall record his decision in writing rejecting or granting the application.

PART VII

APPEALS

36. *Appeals.*—(1) An appeal in accordance with the provisions of sub-rule (2) shall lie against an order—

(a) passed under rule 8, or

(b) requiring an applicant who is an occupant or superior holder to give security under rule 7, or

(c) rejecting a surety tendered under rule 7 as unapproved.

(2) If the original order was passed by—

(a) a Sub-Divisional Officer, the appeal shall lie to the Executive Engineer, or

(b) the Executive Engineer, the appeal shall lie to the Superintending Engineer.

(3) Every order passed by an Executive Engineer under rule 18 or 19 shall be appealable to the Collector, provided that the appeal is presented within 30 days of the date on which the order appealed against was communicated to the appellant.

37. *Manner of preferring appeals.*—All appeals preferred under the Act or under these rules must be made by a written petition signed by the appellant. Such petition may be delivered at the office of the appellate authority by the appellant in person during office hours or forwarded through post.

PART VIII

MISCELLANEOUS

38. *Water rates chargeable under section 48.*—Without the special sanction of the State Government water rates under section 48 shall not be charged on the land watered by a well or wells sunk at a distance of more than 100 feet from any canal situated in the Northern, Central and Southern Circles, or on land watered by a well or wells sunk, before 3rd July 1936 at a distance of more than 100 feet from any canal situated in the Deccan Irrigation Circle :

Provided that such well or wells is or are fed by natural percolation only and not by a surface channel or a constructed underground channel or pipe.

39. *Closing of canal.*—No canal shall be closed for the execution of any repairs, alterations or additions thereto, except in case of emergency, without the previous sanction of the Superintending Engineer, or of the Executive Engineer duly empowered in this behalf by the Superintending Engineer. The Superintending Engineer or the Executive Engineer duly empowered shall fix the period or periods for which the supply of water may be stopped on account of the execution of such repairs, etc. Every intended closure of a canal shall, as far as may be practicable, be notified at least 8 days in advance. In case of emergency the Canal Officer of the highest rank on the spot may close a canal and fix the said period or periods and shall report the matter to the Superintending Engineer.

40. *Passing of persons, animals or vehicles in or across canals.*—(1) No person shall pass, or cause any animal or vehicle to pass, in or across the bank or channel of any canal at any place except where indicated by a notice erected under the order of the Executive Engineer in a conspicuous place.

(2) In fixing places at which the passing in or across the bank or channel of a canal is permitted under sub-rule (1), the Executive Engineer shall have careful regard to the reasonable convenience of the people residing or holding land in the vicinity who are required to cross the canal or water their animals.

41. *Maintenance of water-courses.*—For the purpose of sub-section (b) of section 21 "maintenance" of a water-course shall include the construction of—

(a) such masonry or other work as in the opinion of the Executive Engineer is necessary to prevent waste of water or damage to the channel, or

(b) a pipe outlet in masonry or any other type of outlet arrangement approved by the Superintending Engineer for connecting the water-course to the field channel.

42. *Maintenance of Record of Rights and Register of Mutations.*—Copies of the Record of Rights and Register of Mutations shall be maintained at each Sectional Office or other convenient centre.

PART IX

43. Notwithstanding anything contained in these rules, every application for the supply of water free of charge for agricultural purposes and not for commercial or industrial purposes including the cultivation of sugarcane by sugar companies from a canal vesting in the Government and on which Government has not incurred any expenditure, shall be made in accordance with the provisions of this Part.

44. (1) Every application under this Part shall be made in duplicate to the Executive Engineer concerned in Form VII-A.

(2) Such application may be delivered personally or sent by post to the Executive Engineer concerned.

(3) Printed copies of the prescribed forms of application shall be supplied to intending applicants free of charge.

45. Sanction will be granted for the use of water free of charge for growing food and fodder crops including onions.

46. The applicant shall make a channel or channels for taking water to his lands at his own cost and responsibility.

47. Crops irrigated by the water supplied under this Part shall be separated from all crops irrigated by water supplied otherwise under the Rules by at least 50' at all places.

48. The applicant shall not interfere with the natural drainage or artificial channel in utilising the water sanctioned for his lands.

49. When irrigation channels from canal run parallel to lift channels, they shall have an uncultivated dry strip of not less than 15 feet between the outer toes of the inner banks of the channels.

50. When canal water is crossed by lift channels, the crossing shall be of pacca masonry and pipe crossing shall be to the entire satisfaction of the Canal Officer.

51. When water is allowed to be used by means of a pumping plant, the pumping or 'Take off' arrangement shall be beyond the radius of 300 feet from the edge of the canal boundary or Distributary or boundary limit.

52. The area for which the water has been sanctioned by the Executive Engineer shall be marked on a plan which shall be signed by the applicant.

53. No claim for compensation on account of damage to crops due to the failure or deficiency of water shall be entertained.

54. For using water after the expiry of the period of the pass or without obtaining a pass for use of water or for breach of any of the aforesaid conditions the applicant shall be charged full water rates leviable, and shall also be liable to the penalties imposed under the provisions of the Bombay Irrigation Act, 1879 and the Rules framed thereunder. In such a case, the pass issued to him shall also be cancelled if the period of its validity has not already expired.

55. No other canal water shall be granted to or utilized for the areas brought under cultivation under the pass issued under this Part.

56. Areas of crops grown in excess of the sanctioned area shall be liable to be charged at full water rates leviable for using canal water and in addition the applicant shall be liable to penalties imposed for unauthorised irrigation under the Bombay Irrigation Act, 1879, and Rules framed thereunder.

57. No water shall be taken by the applicant before his application has been sanctioned and before a pass has been delivered to him.

FORM I

(Original)

Form of Application for water for irrigation for in Two-Season Blocks

No. of application.

To—The Executive Engineer,

Division.

I, _____ resident of _____ Taluka _____ District _____ make this application for the supply of water from the _____ canal in the monsoon and cold weather seasons of _____ years in succession from 15th June 19 _____ to 14th February 19 _____ subject to the provisions of the Bombay Irrigation Act, 1879, and any other law for the time being in force relating to irrigation and subject to the provisions of the Bombay Canal Rules, 1934, and to all the conditions specified on the reverse of this application to which I agree, for the purpose of irrigating the land hereinafter described, namely :—

Name of village गावाचे नाव	Distribution पाणी वाटणाऱ्या		Survey No. सर्व्हे नंबर	Pot No. पोट नंबर	Total area of Survey No. or Pot No. सर्व्हे नंबराचे अगर पोट नंबराचे एकूण क्षेत्र	Total area of the holding in Survey No. or Pot No. सर्व्हे नंबरातील अगर पोट-नंबरा- तील मालकीचे एकूण क्षेत्र	Area applied for मागणीचे क्षेत्र
	Channel No. पाटाचा नंबर	Outlet No. दरवाजाचा नंबर					
1	2	3	4	5	6	7	8
					A. g.	A. g.	A. g.

2. I am the _____ of the land for which water has been applied for above.

3. The name and address of persons to whom and the manner in which the order on this application should be delivered are :—

Date 19 _____

Signature or left hand thumb impression of the applicant.

Signature of the witness.

Signature or left hand thumb impression of the occupant or joint occupants or superior holder or joint superior holders in cases in which the applicant is not the owner.

Forwarded for sanction as follows :—

- (1) Total block area to be sanctioned- Acres _____ Gunthas _____
 (2) Period of sanction—From _____ to _____
 (3) Water rates to be charged per acre—Rs. _____

Sub-Divisional Officer,
..... Sub-Division.

Date 19 _____

Sanctioned.

Executive Engineer,
..... Division.

Date 19 _____

(Note.—Details of Security Bond to be invariably furnished by non-owner applicants whose applications are not made or countersigned by owners.)

As per Form No. VIII.

Names of sureties—(1)

(2)

S. No. _____ of _____ given as security as per Form IX.

दोन हंगामी ब्लॉक मंजूर केल्याबद्दल समज	गावच्या तलाठ्याकडे रवाना होण्याकरिता	कालवा	अर्ज नंबर	गावाचे नाव	सर्व्हे नंबर	पोट नंबर	अर्जदाराचे नाव	मंजूर केलेले क्षेत्र	मंजुरीची मुदत	१५ जून १९	१४ जून १९	जोरा	कॅनॉल ऑफिसरची सही.	सत १९
										एकर	पासून	पर्यंत		माहे
														तारीख

INSTRUCTIONS

1. This form is to be used for application for the supply of water on block-system for the irrigation of crops (other than 'pan', sugarcane and other perennial crops), during the monsoon and cold weather seasons only.

2. The application is to be submitted in duplicate to the Executive Engineer or to any officer authorised by him to receive such application. It may be sent by hand, presented personally or sent by post.

3. When order is passed, the duplicate form will be returned to the applicant endorsed with the Executive Engineer's final order.

4. The applicant should note in the space provided at No. 3 on the form the name and address of the person to whom the order on this application is to be given and whether the order should be sent by post or delivered from any canal office, or kept at any office to be called for postal intimation being sent when it is ready for delivery.

5. No sanction will ordinarily be given for the irrigation of any land to any person other than (1) the sole occupant or all joint occupants, (2) the sole superior holder or all joint superior holders, (3) a person having the right to carry on irrigated cultivation of the land for the period of the sanction, or (4) a person duly authorised on behalf of any of these to receive such sanction.

6. The applicant must state at No. 2, on the form the nature of his interest in the land or of his authority to apply for sanction for carrying on irrigated cultivation in the land.

7. Any applicant may be required to furnish a Bond in Form VIII executed by two suitable sureties or execute a mortgage bond in Form IX as security for the payment of all amounts which may become due in respect of the water to be supplied under the sanction. He may also be required to obtain the assent of any person having an interest in the land to the grant of sanction to him.

8. Sanction will be refused for the irrigation of any land which is found to be unsuitable for this form of irrigation.

9. The Executive Engineer will ordinarily sanction areas which are multiples of half an acre. However, when an application has been made for the supply of water in respect of a holding comprising the entire area of a Survey No. or Plot No. and when such application is considered suitable for sanction, sanction will be given in respect of the whole holding.

CONDITIONS

1. Water will be reserved in the monsoon and cold weather seasons for the sanctioned area for the light type of Bhushar crops, or for medium type of crops such as 'Paddy' and 'Khapali' to such limited extent as the Executive Engineer in charge of the Canal, may decide from time to time.

Explanation.—"Light type Bhushar crops" means crops which do not require water in every turn of irrigation.

2. The area sanctioned shall not be exceeded but, if the irrigator wishes to irrigate, in any year, an area in excess of the sanctioned area, he may submit an application for the same in Form VII. Such applications will be given preference over those received from other applicants who are not block-holders.

3. If the person, on whose application the supply is sanctioned, desires to shift the whole or part of his block from the sanctioned plot to another plot, he will be allowed to do provided he applies for such change before 15th April immediately preceding the 15th June from which the change is required.

4. Water rates shall be charged for the monsoon and cold weather seasons for the whole period of the sanction so long as water is made available, whether or not the area is irrigated in the monsoon and cold weather seasons:

Provided that if in any particular year an applicant is unable to irrigate the whole or part of the block area for which water has been sanctioned, he may be granted exemption from the water rates payable in respect of such whole or part of the block, as the case may be, provided further that he applies in Form X for such exemption before the dates specified below :—

(a) In the first year of the block period—within one month from the date of the receipt of water-pass, if no water is taken for the block or part of the block :

(b) In any subsequent years of the block period—before 15th May immediately preceding the 15th June of the year for which exemption is required. [Such exemption shall not be granted for more than two times in a sanctioned block period.] When such exemption is granted, subsequent permission to irrigate the block or part of the block exempted will only be given at $1\frac{1}{2}$ rates prescribed for the monsoon and cold weather seasons together and if water is available.

1 Ins. by G. N. of 15-12-1961.

5. The sanction to a block may be cancelled at the request of the block-holder :—

(a) from the beginning of the first year if he applies for cancellation within one month from the date of the receipt of the water-pass; or

(b) during any subsequent year of the period of sanction if he gives notice of cancellation, in writing, before the 15th May immediately preceding the 15th June of the year during which the supply is not required: Provided that the Executive Engineer may, at any time after giving 12 months' notice, cancel the supply of water to any block or part of the block, if in his opinion, further continuance of the supply of water to it is objectionable.

6. The block sanction is liable to be cancelled or the supply to any crop irrigated under the sanction is liable to be withheld or stopped entirely without any previous notice for definite breach of any rule of the Bombay Canal Rules, 1934, or any of the conditions of this form of application.

Additional condition 7 for Ashti, Pathri, Koregaon and Ekrak Tanks

7. Where no permanent water channel exists, the irrigator shall allow the construction of a temporary channel through his land, if necessary, along a line fixed by the Executive Engineer or his representative for the benefit of irrigators whose fields are situated below his land.

Note.—Condition 1 above does not apply to Ekrak Tank.

(Additional conditions for Ekrak Tank)

8. Water will be reserved in the cold weather season for the sanctioned area for rabi crops subject to the condition that if water is taken for kharif or two-season crops no water shall be guaranteed for rabi crops. The block holder may substitute for each $1\frac{1}{2}$ acres of Kharif or Rabi crops 1 acre of two-season crops.

9. Water is liable to be withheld at any time but full water rates shall be payable for the sanctioned area entered at No. (1) on the form for cold weather season whether the area is irrigated or not, provided water was available during the period.

दीन हंगामी ब्लॉकचा अर्ज दिल्याची पावती

कालवा

गावाचे नाव

सर्व्हे नंबर

प्लॉट नंबर

अर्जदाराचे नाव

मागणीप्रमाणे क्षेत्र :

अर्जाची तारीख

अर्ज पोहोचल्याची तारीख व शेरा

अर्ज घेणाऱ्या अंमलदाराची सही

गुठे

एकर

नमुना नंबर १-अ

अर्जाचा नंबर

दोन हंगामी ब्लॉकातील पिके भिजविण्यासाठी पाणी मिळण्याबद्दलचा अर्ज

मे० एक्झिक्युटिव्ह इंजिनियर, भाग, यांस,

मी राहणार तालुका जिल्हा असा अर्ज करतो की, यात खाली सांगितलेली जमीन भिजविण्यासाठी तारीख १४ माहे जून सन १९ पासून सुरू होऊन तारीख १४ माहे फेब्रुवारी सन १९ रोजी संपणाऱ्या लागोपाठ वर्षांच्या पावसाळ्याच्या व हिवाळ्याच्या हंगामात, सन १९७९ चा मुंबई इरिगेशन अॅक्ट व इरिगेशनशी संबंधित असून त्या त्या वेळी अंमलात असलेला इतर कोणताही अॅक्ट यास, व तसेच या अर्जाच्या मागील बाजूस छापलेल्या व मला मान्य असलेल्या सर्व शर्तीस व सन १९३४ च्या अथवा त्या त्या वेळी अंमलात असलेल्या मुंबईच्या कालव्याबाबतच्या कांन्चे ठरावास पात्र राहून कालव्याचे पाणी देण्याची कृपा करावी :—

गावाचे नांव	पाणी वाटणाऱ्या		सर्व्हे नंबर	पोट नंबर	सर्व्हे नंबर अगर पोट नंबरचे एकूण क्षेत्र	सर्व्हे नंबर अगर पोट नंबरातील मालकीचे एकूण क्षेत्र	मागणीचे क्षेत्र	शेरा
	पाटाचा नंबर	दरवाजा नंबर						
१	२	३	४	५	६	७	८	९
एकर गुंटे			एकर गुंटे			एकर गुंटे		

२. ज्या जमिनीस पाणी मिळावे म्हणून मी वर अर्ज केला आहे, त्या जमिनीचा मी आहे.

३. ज्या इसमास व ज्या रीतीने या अर्जावरून हुकूम द्यावयाचा, त्याचे नाव, पत्ता व रीत या गोष्टी खालीलप्रमाणे आहेत :—

तारीख माहे सन १९

अर्जदाराची सही अगर त्याच्या डाव्या हाताच्या आंगठ्याचा ठसा.

साक्षीदाराची सही :—

ज्या बाबतीत अर्जदार जमिनीचा खातेदार नसेल किंवा वरिष्ठ धारण करणारा नसेल त्याबाबतीत खातेदाराची अगर समायिक खातेदारांच्या, किंवा वरिष्ठ धारण करणाऱ्याची किंवा समायिक वरिष्ठ धारण करणाऱ्यांच्या अनुक्रमे सही किंवा सहा, किंवा त्यांच्या डाव्या हाताच्या आंगठ्याचा ठसा, किंवा त्यांच्या डाव्या हाताच्या आंगठ्यांचे ठसे.
(सूचना.—बरील सर्व माहिती अर्जदार याने पुरी करून द्यावयाची आहे.)

नमुना नंबर १-अ—चालू

- (कॅनॉल इन्स्पेक्टरने भरावयाची माहिती) (सेक्शनल ऑफिसरने भरावयाची माहिती)
- बरील कोष्टकाचे कलम २ व ३ मध्ये लिहिलेली माहिती बरोबर आहे/नाही.
 - वर मागणी केलेले क्षेत्र उडाफ्याचे असून/नसून भरण्यास सोयीचे आहे/नाही.
 - विहिरीचे अगर नाल्याचे व कॅनॉलचे पाणी मिसळले जाण्याची शक्यता आहे/नाही.
 - अर्जदार हा जमिनीचा मालक/संरक्षित कूळ/साधे कूळ/खंडकरी आहे.
 - खंडकरी असल्यास खंडाची मुदत पासून पर्यंत आहे.
 - जमीन इनाम आहे/नाही/तिच्यावर बोजा आहे/नाही.
 - अर्जदार इरिगेशनचा थकबाकीदार आहे/नाही.
 - बरील कोष्टकातील कलम ४ ते ७ मध्ये नमूद केलेली माहिती बरोबर आहे/नाही.
 - मागणी क्षेत्राकरता पासून पर्यंतच्या मुदतीसाठी ट्रिप्लिकेट पावती नंबर प्रमाणे, रोख आगाऊ भरणा केला—(१) पाणी-पट्टी रु. पै.
 - मंजुरीस, अगर खालील कारणाकरता नामंजुरीस रवाना.

तारीख

कॅनॉल इन्स्पेक्टर.

सेक्शनल ऑफिसर,

तारीख

..... सेक्शन.

खालीलप्रमाणे मंजुरीस रवाना :—

(१) मंजूर करावयाचे एकूण ब्लॉक क्षेत्र :—

एकर

गुंटे

(२) दर एकरी आकारावयाच्या पाणी-पट्टीचा दर—रु.

(३) मंजुरीची मुदत—

पासून

पर्यंत.

तारीख

सब-डिव्हिजनल ऑफिसर,
..... डिव्हिजन.

नमुना नंबर १-अ-चालू

- (१) पास नं. ता. "मंजूर".
 (२) मंजूर फॉर्म नंबर १८ चा क्रमांक

तारीख

एक्झिक्युटिव्ह इंजिनियर,
..... डिप्टी जेन.

टीप.—नमुना नंबर ९ प्रमाणे तारणादाखल दिलेल्या जमिनीचा तपशील :—

जिल्हा	तालुका	गाव	स. नं.	क्षेत्र
				ए. गुं.

दुहंगामी ब्लॉककरिता दिलेला पाणी-अर्ज नामंजूर केला असेल त्यावेळी अर्जदारास देण्याची चिठ्ठी

- | | |
|---|---|
| (१) दुहंगामी ब्लॉककरिता दिलेल्या पाणी-अर्जाचा नंबर. | (६) ओटलेट नंबर. |
| (२) अर्ज दाखल करून घेतल्याची तारीख. | (७) गाव व सव्हे नंबर. |
| (३) अर्जदाराचे नाव. | (८) दुहंगामी ब्लॉकचे मागणी क्षेत्र—ए. गुंटे |
| (४) कॅनॉल. | (९) मुदत पासून पर्यंत. |
| (५) फाटा नंबर. | (१०) अर्ज नामंजूर करण्याची कारणे :— |

एक्झिक्युटिव्ह इंजिनियर,
..... डिप्टी जेन.

दुहंगामी ब्लॉकचा पाणी-अर्ज दाखल करून घेतल्याबद्दल अर्जदारांना धावयाची पोहोच.

- | | |
|-----------------------|--|
| (१) कॅनॉल | (६) दुहंगामी ब्लॉकची मागणी केलेले क्षेत्र—
ए. गुंटे |
| (२) फाटा व दारे नंबर. | (७) मुदत— पासून पर्यंत. |
| (३) गाव. | (८) अर्ज दाखल करून घेतल्याची तारीख. |
| (४) — | (९) शेरा. |
| (५) अर्जदाराचे नाव. | |

अर्ज दाखल करून घेणाऱ्या अंमलदाराची सही, तारीख व हुंदा.

१. फक्त पावसाळ्याच्या व हिवाळ्याच्या हंगामात, ब्लॉक पद्धतीने हंगामी व दुहंगामी पिकांना (खालील शर्त १ ली अनुसरून) हा अर्जाचा नमुना उपयोगात आणावा.

२. सदरहू अर्ज एक्झिक्युटिव्ह इंजिनियरकडे किंवा असे अर्ज स्वीकारण्यास त्यांनी ज्यास अधिकार दिला असेल अशा अंमलदाराकडे सादर केला पाहिजे. तो हाती नेऊन घावा, स्वतः जातीने सादर करावा किंवा टपालाने पाठवावा.

३. अर्ज मंजूर झाला तर त्याचा पास अर्जदारास देण्यात येईल आणि अर्ज नामंजूर झाला तर, मागे लगत असलेली चिठ्ठी, नामंजुरीची कारणे नमूद करून अर्जदारास देण्यात येईल.

४. अर्जाचे (मागील बाजुवरील) कोष्टकाखालील नोंद नंबर ५, २ व ३ मध्ये राखून ठेवलेल्या जागेत अवश्य ती माहिती अर्जदारांनी भरावयास पाहिजे.

५. (१) एकटाच खातेदार किंवा सामायिक खातेदार; (२) वरिष्ठ धारण करणारा किंवा सामायिक वरिष्ठ धारण करणारे; (३) मंजुरीच्या मुदतीत जमीन भिजवून मशागत करण्याचा ज्याचा हक्क असेल असा इसम; किंवा (४) अशी मंजुरी मिळण्यास या इसमापैकी कोणत्याही इसमाच्या वतीने ज्यास योग्य रीतीने अधिकार असेल अशा इसमाखेरीज कोणत्याही इतर इसमास कोणतीही जमीन भिजविण्यासाठी पाणी मिळण्याबद्दल केलेला कोणताही अर्ज साधारणतः मंजूर केला जाणार नाही.

६. मंजुरीप्रमाणे पुरवावयाच्या पाण्याबद्दल धावयाच्या सर्व रकमांबद्दल तारण म्हणून कोणत्याही अर्जदाराला नमुना नंबर ९ प्रमाणे गहाणखत करून द्यावे लागेल. त्याप्रमाणे मंजुरी मिळण्याचे बाबतीत जमिनीत हितसंबंध असणाऱ्या कोणत्याही इसमाची संमती अर्जदाराने मिळविली पाहिजे.

७. अशा रीतीने पाणी दिले जाण्यास जी जमीन अयोग्य आहे असे वाटेल त्या जमिनीस पाणी देण्याची मंजुरी नाकारण्यात येईल.

८. जी क्षेत्रे पूर्ण एकरांच्या पटीत असतील अशीच क्षेत्रे साधारणतः मंजूर केली जातील. ज्या ठिकाणी एखाद्या सव्हे नंबरचे अगर पोट नंबरचे सर्व क्षेत्रांच्या सर्व क्षेत्र मागणी केले असून ते मंजूर करण्यासारखे असेल व ते किमान एक एकरचे असेल तर ते तसेच मंजूर केले जाईल.

शर्ती

१. या ब्लॉकात, पावसाळा व हिवाळ्याच्या (रबी) हंगामात कोणतीही हलकी (म्हणजे साधारणतः ३० दिवसांच्या अंतराने पाणी लागणारी) पिके करता येतील. ब्लॉकच्या मंजूर झालेल्या क्षेत्रापैकी अर्ध्या क्षेत्रात पावसाळा हंगामात पावसाळी पिकांकरता, व राहिलेल्या अर्ध्या क्षेत्रात रबी हंगामात रबी पिकांकरता पाणी दिले जाईल. पावसाळी पिकास १४ ऑक्टोबरच्या पुढे पाणी लागणार असेल तर, एक्झिक्युटिव्ह इंजिनियर ठरवतील त्याप्रमाणे ते दिले जाईल. मात्र मग हे पावसाळी पिके निघाल्याशिवाय, राहिलेल्या अर्ध्या क्षेत्रात रबी पिकास परवानगी मिळणार नाही. आणि ही परवानगी दिली गेली तर रबी पिकास १४ फेब्रुवारीच्या पुढे पाणी पुरविण्याची हमी घेतली जाणार नाही. तसेच पावसाळी पिकांकरता राखून ठेवलेल्या अर्ध्या भागात पावसाळी पिक केले नसेल तर रबीकरता असलेल्या अर्ध्या भागात रबी पिकास १५ ऑक्टोबरचे अगोदरपासून देखील पाणी मिळू शकेल.

२. पाण्याच्या दर पाळीस पाणी लागणारी साळ, खपला, यांसारखी भारी दर्जाची पिके, अशा ब्लॉकात देण्याचे ज्या वेळी शक्य होईल त्या वेळी ती काही ठराविक क्षेत्रापर्यंतच दिली जातील व त्याबद्दलची जाहीर नोटीस, त्या त्या वेळी एक्झिक्युटिव्ह इंजिनियर यांचेकडून आगाऊ प्रसिद्ध केली जाईल. अशी विशेष मंजुरी मिळाल्याशिवाय अशा तऱ्हेची पिके करणे नियमबाह्य समजले जाईल.

३. मंजुरीच्या क्षेत्राहून जास्त क्षेत्र भिजविता येणार नाही.

४. दर वर्षी, तारीख १५ माहे जूनपासून अगर मुख्य तलावात तोपर्यंत नवीन पाणी आले नसेल तर ते पुरेसे पाणी ज्या पुढील तारखेपर्यंत येईल, त्या तारखेपासून, या ब्लॉकातील पिकांना पाणीपुरवठा सुरू होईल.

५. (१) ज्या इसमाच्या अर्जावरून पाण्याचा पुरवठा मंजूर करण्यात आला असेल त्या इसमास सर्व ब्लॉक अगर त्याचा पावसाळी अगर रबी पिकांकरता असलेला कोणताही अर्धा भाग मंजूर केलेल्या ठिकाणाहून दुसऱ्या ठिकाणी बदलाव्याचा असेल तर, मंजुरीच्या पहिल्या व शेवटच्या वर्षी खेरीजकरून, खालील अटीवर ही फेर-मोजणी सामान्यतः मंजूर केली जाईल :—

(अ) ज्या ठिकाणी ते क्षेत्र बदलून घ्यावयाचे आहे ती जमीन ब्लॉकला योग्य असून मूळच्या ओटलेटने भिजत असली पाहिजे.

(ब) ज्या १५ जूनपासून असा बदल पाहिजे असेल त्याच्या लगत अगोदरच्या १५ एप्रिलच्या पूर्वी या बदलाकरता कच्च्या नकाशासह अर्ज द्यावयास पाहिजे.

अर्ज मंजूर झाल्यानंतर प्रत्येक ब्लॉकचे दोन सारखे भाग बागायतदारांनी स्व-खर्चाने पहिल्या वर्षीच पाडून घेतले पाहिजेत. तसे न केल्यास ब्लॉक नामंजूर केले जातील.

(२) पावसाळा हंगामात, पावसाळी पिकांकरता असलेल्या ब्लॉकच्या अर्ध्या भारात, वरील शर्त २ प्रमाणे पावसाळी पिकांकरता व रबी हंगामात रबी पिकांकरता असलेल्या अर्ध्या भागातील रबी पिकांकरता पाणी राखून ठेवले जाईल, मग अर्जदार त्याचा उपयोग करो अगर न करो. मात्र मंजूर ब्लॉकचा सर्व किंवा कोणताही अर्धा भाग मंजुरीच्या मुदतीतील कोणत्याही एखाद्या वर्षी भिजविता येणार नाही असे अर्जदार यास वाटले तर त्याने त्या सर्व अगर अर्ध्या क्षेत्रावर आकारल्या जाणाऱ्या पाणी-पट्टीची माफी मिळण्याकरता, नमुना नंबर १० चा अर्ज त्या वर्षाच्या तारीख १५ मेच्या आत द्यावयास पाहिजे. अशा रीतीने माफी मंजूर झाल्यानंतर त्या वर्षी त्या क्षेत्रातील पिकांना पुन्हा मंजुरी दिली जाणार नाही.

(३) तसेच ब्लॉक मंजूर झाल्यानंतर एखाद्या अर्जदारास तो रद्द करून घ्यावयाचा असेल तर, एक्झिक्युटिव्ह इंजिनियर, अगर त्यांनी अधिकार दिलेला इतर कोणत्याही अधिकारी याचेकडे अर्जदाराने लेखी विनंती केल्यास, खालीलप्रमाणे तो ब्लॉक रद्द होऊ शकेल :—

(अ) मंजुरीच्या पहिल्या वर्षी—मंजुरी मिळाल्यापासून एक महिन्याचे आत विनंती केल्यास.

(ब) नंतरच्या वर्षांपैकी कोणत्याही वर्षी—ज्या १५ जूनपासून ब्लॉक रद्द करून हवा असेल त्याच्या लगतच्या मागील १५ एप्रिलच्या पूर्वी विनंती केल्यास :

मात्र, एक्झिक्युटिव्ह इंजिनियर यांचे नते कोणत्याही मंजूर ब्लॉकला पाणीपुरवठा चालू ठेवणे आक्षेपाहू असेल तर, कोणताही ब्लॉक अथवा त्याचा भाग, बारा महिन्यांची नोटीस देऊन, एक्झिक्युटिव्ह इंजिनियर यांना केव्हाही रद्द करता येईल.

६. ज्या ठिकाणी कायम स्वरूपाचे पाण्याचे पाट नसतील, त्या ठिकाणी, जमीन भिजविणाऱ्याने एक्झिक्युटिव्ह इंजिनियर अगर त्यांचा प्रतिनिधी ठरवील त्या पद्धतीने, जरूर तर तात्पुरता पाट आपल्या जमिनीतच खालील बाजूच्या जमिनीत ज्या पाणी घेणाऱ्यांची शेते आहेत त्यांच्या हितासाठी काढू द्यावयास पाहिजे.

७. सन १९३४ च्या अगर त्या त्या वेळी अंमलात असलेल्या मुंबईच्या कालव्याबाबतच्या कानूनांमधील कोणत्याही कानूनाचे, अगर या अर्जाच्या शर्तीपैकी कोणत्याही शर्तीचे उघड उल्लंघन झाल्यास, कोणत्याही प्रकारची नोटीस न देता, ब्लॉकला दिलेली मंजुरी रद्द केली जाण्यास, अगर या मंजुरीप्रमाणे कोणतेही पाणी देण्यात येत असलेल्या पिकांचा पाणीपुरवठा दिला न जाण्यास अगर सर्वस्वी बंद केला जाण्यास पात्र राहील.

FORM I-B

Form of application for water for irrigation in Rabi Blocks

No. of application :

To

THE EXECUTIVE ENGINEER, Division.

I, resident of....., Taluka....., District....., make this application for the supply of water from..... Canal/Tank in the Rabi Season of..... years in succession from 15th October 19..... to 14th February 19..... subject to the provisions of the Bombay Irrigation Act, 1879, and any other law for the time being in force relating to irrigation and subject to the Bombay Canal Rules, 1934, or to the Canal Rules from time to time being in force, and to all the conditions specified on the reverse of this application to which I agree, for the purpose of irrigating the land hereafter described :—

Name of the village	Distributing Channel Outlet No.		Survey No.	Pot No.	Total area of the Survey No. or Pot No.	Total area in possession of the applicant, Area in the Survey applied	
	2	3				No. or Pot No.	Area
1	2	3	4	5	6	7	8
					A. g.	A. g.	A. g.

2. I am..... of the land for which water has been applied for above.

3. The name and address of the person, and the manner in which the order on the application should be delivered, are :

Date.....19....

Signature of witness.....

Signature or left hand thumb impression of the applicant.

Signature or left hand thumb impression of the occupant or joint occupants, or superior holder or joint superior holders, in the case in which the applicant is not the owner or the protected tenant under the Bombay Tenancy and Agricultural Lands Act, 1948.

(Note.—All the above details are to be completed by the applicant.)

(To be filled in by the Canal Inspector)

1. Information filled in columns 2 and 3 above of the tabular form is/is not correct.
2. The area applied for above is/is not isolated and can/cannot be irrigated suitably.
3. There is/is not any possibility of mixing-up of canal and well water.

(To be filled in by the Sectional Officer)

1. The date of receipt of water application
2. The applicant is/is not the owner, the protected tenant, ordinary tenant, the lessee of the land.
3. In case he is lessee the period of the lease from.....to.....
4. The land is/is not "INAM" and is/is not encumbered.
5. The applicant is/is not a defaulter.
6. The Survey numbers and the areas given in columns 4 to 7 above of the tabular form is/is not correct.
7. Advance water rate paid as per T. R. No.....for an area of.....for the period
8. Recommended for sanction for rejection, for the reasons that.....

Date..... Canal Inspector.

Date..... Sectional Officer,
.....Section.

Forwarded for sanction as follows :—

1. Total block-area to be sanctioned A....G....
2. Period of sanction, from time.....to.....
3. Water to be charged per Acre, Rs.

Date Sub-Divisional Officer,
.....Sub-Division.

1. Pass No.....dated the..... "Sanctioned".
2. Serial No.....of the sanctioned Form XVIII.

Date Executive Engineer,
.....Division.

Details of land mortgage security, furnished in the prescribed form..... Survey No..... of an area of..... Acres..... Gunthas, of village..... Taluka..... District....., given as security in Form IX.

.....Fold hereFold here

Slip to be given to the applicant when the application for the "Rabi Block" is rejected.

1. Application No.....
2. Date of receipt of the application.
3. Name of applicant
4. Canal or Tank
5. Distributary No.
6. Outlet No.
7. Village and Survey No.....
8. Area of Rabi Block, applied.....
9. Period of application
10. Reasons for rejection

Executive Engineer,
..... Division.

.....Fold hereFold here

Acknowledgment Slip to be given to the applicant, for the receipt of the "Rabi Block" application.

Canal or Tank Area of Rabi Block,....A....
 Distributary No. and Outlet No. Period for which applied, from.....
 Village..... to.....
 Survey No. and Plot No. Date of receipt of water application....
 Name of applicant..... Remarks.....

Designation and dated signature of
the Officer, receiving the water application.

1. This form is to be used for application for the supply of water on block-system, for the irrigation of light Rabi Seasonal Crops (vide condition 1, below), during the cold weather season only.

2. The application is to be submitted to the Executive Engineer or to any other officer authorised by him to receive such application ; it may be sent by hand, presented personally or sent by post.

3. When the application is sanctioned, a pass will be issued to the applicant. When it is rejected the slip annexed hereto, will be issued, stating reasons for rejection.

4. The applicant must fill in the blanks in items 2 and 3 below the tabular form overleaf.

5. No sanction will ordinarily be given for the irrigation of any land, to any person other than (1) the sole occupant or all joint occupants, (2) the sole superior holder or all joint superior holders, (3) a person having the right to carry on irrigated cultivation of the land for the period of the sanction, or (4) a person duly authorised on behalf of any of these to receive such sanction.

6. Any applicant may be required to execute a mortgage bond in Form IX as security for the payment of all amounts which may become due in respect of the water to be supplied under the sanction. He may also be requested to obtain the assent of any person having an interest in the land to the grant of sanction to him.

7. Sanction will be refused for the irrigation of any land which is found to be unsuitable for this form of application.

8. The Executive Engineer will ordinarily sanction areas which are in multiples of half acre. In the cases, where the whole holding of a Survey No. or Plot No. is applied for, and is suitable for sanction no half-acre multiple will be insisted upon, and the whole area so applied, will be sanctioned. Area less than one acre will not be sanctioned.

CONDITIONS

1. Such light Rabi seasonal crops only as are shown on September-October rains will get water in these Rabi Blocks. Water will be supplied for sowing only in the case of total failure of rains, in a year, till about 10th of October.

2. Normally, only two watering at an interval of about thirty days will be allowed. If in any year, the water-supply will be found to be inadequate, only one watering will be given; and if extra supply be available a third watering may be given.

3. The sanctioned area shall not be exceeded.

4. (1) If a person on whose application the supply is sanctioned, desires to shift the whole or part of the sanctioned block area from the sanctioned place to another place, this may be allowed except in the first and the last year of the sanctioned period, provided the land is suitable, and he applies for the change before 15th August preceding the 15th October from which he wants such change.

(2) Water shall be reserved for Rabi Seasons, as specified in conditions 1 and 2 above, so long as water is available, whether the sanctioned area is irrigated or not. But if in any year, the applicant is unable to irrigate the whole or part of the block, for which water has been sanctioned, he may be granted exemption from the water rates payable in respect of such whole or part of the block; as the case may be, provided that he applies in Form X for such exemption on or before the 15th August, preceding the 15th October of the year, for which the exemption is required. [Such exemption shall not be granted for more than two times in sanctioned block period.] When such exemption is granted, subsequent permission to irrigate the area, so exempted, will not be granted.

(3) Similarly, if the applicant wishes to cancel his block after it is sanctioned, the block sanction will be cancelled on his written request to that effect to the Executive Engineer, or to any other officer authorised by him in that respect, provided that such request is made, (i) within one month from the receipt of the pass and before taking water, if the cancellation is required in the first year of the sanctioned period of the block; (ii) in subsequent years, before 15th August preceding the 15th October from which the cancellation is required:

Provided further that, the Executive Engineer may at any time, after giving 12 months' notice cancel any block or any part of a block, if in his opinion, further continuance of supply of water to it is objectionable.

5. Where no permanent water channel exists, the irrigator shall allow the construction of a temporary channel through his land, if necessary, along a line fixed by the Executive Engineer or his representative, for the benefit of the irrigators whose fields are situated below his land.

6. The block sanction is liable to be cancelled, or the supply to any crop irrigated under the sanction is liable to be withheld or stopped entirely without any previous notice for definite breach of any rule of the Bombay Canal Rules, 1934, or the Canal Rules for the time being in force, or any of the conditions of this form of application.

FORM II

(Original)

Form of application for water for Irrigation in One-Third Sugarcane Blocks

No. of application

To—The Executive Engineer,

Division.

I, _____, resident of _____, Taluka _____, District _____, make this application for the supply of water from the _____ canal for _____ years in succession from 15th February 19 _____ to 14th February 19 _____, subject to the provisions of the Bombay Irrigation Act, 1879, and of any other law, for the time being in force relating to irrigation and subject to the provisions of the Bombay Canal Rules, 1934, and the conditions specified on the reverse of this application to which I agree, for the purpose of irrigating the land hereinafter described, namely :—

Name of Village गावाचे नाव	Distributing पाणी वाटणाऱ्या		Survey No. सर्व्हे नंबर	Pot No. पोट नंबर	Total area of Survey No. or Pot No. सर्व्हे नंबराचे अगर पोट नंबराचे एकूण क्षेत्र	Total area of the holding in Survey No. or Pot No. सर्व्हे नंबरातील अगर पोट नंबरातील मालकीचे एकूण क्षेत्र	Total area applied for मागणीचे क्षेत्र
	Channel No. पाटाचा नंबर	Outlet No. दरवाजाचा नंबर					
1	2	3	4	5	6	7	8
					A. g.	A. g.	A. g.

2. I am the _____ of the land for which water has been applied for above.

3. The name and address of person to whom and the manner in which the order on this application should be delivered are :—

Date

19

Signature or left hand thumb impression of the applicant.

Signature of the witness.

Signature or left hand thumb impression of the occupant or joint occupants or superior holder or joint superior holders, in cases in which the applicant is not the owner.

Forwarded for sanction as follows :—

- (1) Block No. (2) Block Plots Nos.
(3) Area to be allotted— Acres Gunthas (4) Period—From to
(5) Water rate per acre to be charged—Rs.

Date 19 Sub-Divisional Officer,
Sanctioned. Sub-Division.

Date 19 Executive Engineer,
Division.

(Note.—Details of Security Bond to be furnished by non-owner applicants as per Instruction 7.)

Names of sureties (1) } in Form VIII.
(2)

S. No. of given as security as per Form IX.

एक-दुसरीयाज उसाच्या ब्लॉकच्या मंजुरीची समज	गावच्या तलाठाकाडे रवाना होण्याकरिता	कालबा	गावाचे नाव	अर्जाचा नंबर	सर्व्हे नंबर	पोट नंबर	अर्जदाराचे नाव	ब्लॉकचा मंजूर केलेला क्षेत्र	एकर	मंजुरीची मुदत	१५-२-१९	पासून	१४-२-१९ पर्यंत	अर्ज मंजुरीची तारीख	मोरा	तारीख	कॅनॉल ऑफिसर
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INSTRUCTIONS

- This form is to be used for applications for the supply of water on the block system for the irrigation of sugarcane in those cases where the area of sugarcane permitted to be grown in the block is limited to one-third of the block area.
- The application is to be submitted in duplicate to the Executive Engineer or to any officer authorised by him to receive such applications. It may be sent by hand, presented personally or sent by post.
- When order is passed, the duplicate form will be returned to the applicant endorsed with the Executive Engineer's final order.
- The applicant should note in the space provided at No. 3 on the form the name and address of the person to whom the order of the Executive Engineer is to be given and whether the order should be sent by post or delivered from any canal office, or kept at any office to be called for postal intimation being sent when it is ready for delivery.
- No sanction will ordinarily be given for the irrigation of any land to any person other than (1) the sole occupant or all joint occupants, (2) the sole superior holder or all joint superior holders, (3) a person having the right to carry on irrigated cultivation of the land for the period of the sanction, or (4) a person duly authorised on behalf of any of these to receive such sanction.

6. The applicant must state at No. 2 on the form the nature of his interest in the land or of his authority to apply for sanction for carrying on irrigated cultivation in the land.

7. Any applicant may be required, to furnish a Bond in Form VIII executed by two suitable sureties or execute a mortgage bond in Form IX as security for the payment of all amounts which may become due in respect of the water to be supplied under the sanction. He may also be required to obtain the assent of any person having an interest in the land to the grant of sanction to him.

8. Sanction will be refused for the irrigation of any land which is found to be unsuitable for this form of irrigation.

9. The Executive Engineer will sanction blocks subject to a minimum of and in multiples of 1½ acres. The different half acre plots forming a block may not be contiguous but must be on the same outlet.

CONDITIONS

1. The area of sugarcane shall not exceed one-third of the total area of the block except as provided below :—

When new sugarcane is to be planted at some time before a standing crop in the same block is cut, permission will be given for such planting, although the total area of the standing crop and the newly planted crop exceeds one-third of the block area, on the following conditions and in the following circumstances :—

- that water is available after providing all supplies already sanctioned;
- that the giving of the additional supply required can be arranged for consistently with necessary arrangements for maintenance, repair and working of the canal;
- that if the standing sugarcane crop has been planted between a date which may be notified from time to time and 31st August next following permission shall not be given for the planting of such new sugarcane crop before the break of the monsoon in the following year;
- that if the standing cane crop has been planted between 1st September and a subsequent date which may be notified from time to time permission shall not be given for the planting of such new sugarcane before the standing cane crop is 9 months old;
- that the area of new sugarcane shall not exceed the area of standing sugarcane which satisfies conditions (3) and (4);
- that application is made on Form VI for the supply of water required in addition to that provided by the original sanction. The charge will be the sugarcane rate for the excess of sugarcane area over one-third and for the period of overlap applied for.

2. No second ratoon of sugarcane shall be allowed. Water shall not be supplied to any piece of land for irrigation more than three sugarcane crops during any period of five irrigation years.

3. To the remaining two-third area of the block, water shall be given for irrigation for about eight months, from 15th June (if water be available) or from the break of the monsoon till the 14th February following. This area shall not be irrigated either from the canals or wells between the 15th February and the 14th June of the following year except as provided below :—

If water is available, sanction shall be given on Form VI to pre-seasonal waterings subject to the following conditions :—

- No water shall be supplied before 25th April.
- Not more than two-third of the whole block area shall be under irrigation at one time whether with canal or well water :

Provided that if water is available, sanction shall be given with effect from 25th May to early watering in the remaining one-third of the area of green manure crops only.

4. If sugarcane is not grown on the full one-third area of the total block area, twice the area in units not so utilised may be planted with other crops (excluding long-term fruit trees and pan gardens). If sugarcane or other crops grown in lieu thereof fail, a similar or lower rated crop or a succession of such crops may be planted on the same or any other equal area of the block in lieu thereof.

5. The block rate shall be payable for the whole area for which the sanction for the supply of water is in force without reference to the nature or extent of irrigated cultivation within the block. If in any particular year the applicant is unable to irrigate the whole or part of the block for which water has been sanctioned, he may be granted exemption from the water rates payable in respect of such whole or part of the block, as the case may be, provided that he applies on Form X for such exemption from water rates before the dates specified below and that the proportion of sugarcane to other crops is not thereby increased in the area that remains over after the said exemption—

(i) For the first year of the block period .. Within one month from the date of sanction.

(ii) For subsequent years of the block period. Before 15th November preceding the year beginning from February 15th for which exemption is required.

[Such exemption shall not be granted for more than two times in sanctioned block period.]

6. The block may be cancelled at the request of the block-holder—

(a) from the beginning of the first year if he applies for cancellation within one month from the date of sanction; or

(b) during the remaining period of sanction if he gives notice of cancellation in writing before the 15th November preceding the year beginning from February 15th from which the block is not required : Provided that the Executive Engineer may at any time after giving twelve months notice cancel any block or any part of a block if in his opinion further, continuance of supply to it is for any reason objectionable.

7. When exemption from water rate is granted in accordance with condition 5 above subsequent permission to irrigate the whole or part of the block area so exempted shall, if water be available, be given only at $1\frac{1}{2}$ times the block rate, subject to the proviso that if it is desired subsequently to irrigate seasonal or two season crops only in the exempted portion permission may be granted at the sanctioned rates provided that an application in Form VII is received before the date fixed in accordance with rule 5 (i) of the Bombay Canal Rules, 1934.

8. When a sugarcane block is cancelled at the request of the irrigator under condition 6 a further supply of water for the irrigation of sugarcane within the area of the cancelled block shall not be sanctioned within a period of one year from the date of such cancellation.

9. The block sanction is liable to be cancelled or the supply to any crop irrigated under the sanction is liable to be withheld or stopped entirely without any previous notice for breach of any of the above conditions or any rule of the Bombay Canal Rules, 1934.

एक-तृतीयांश उपाख्या ब्लॉकचा अर्ज
दिल्याबद्दल अर्जदारास देण्याची पावती

कालवा

गावाचे नाव

अर्जदाराचे नाव

सव्हे नंबर

पोट नंबर

अर्जाची तारीख

अर्ज पोहोचल्याची तारीख व शेरा

अर्ज घेणाऱ्या असलदाराची सही

1 Ins. by G. N. of 15-12-1961.

FORM III

(Original)

Form of application for water for Irrigation in One-Fourth Sugarcane Blocks

No. of application

To—The Executive Engineer,

Division.

I, _____, resident of _____, Taluka _____, District _____, make this application for the supply of water from the _____ canal for _____ years in succession from 15th February 19____ to 14th February 19____, subject to the provisions of the Bombay Irrigation Act, 1879, and of any other law for the time being in force relating to irrigation and subject to the provisions of the Bombay Canal Rules, 1934, and the conditions specified on the reverse of this application to which I agree, for the purpose of irrigating the land hereinafter described, namely :—

Name of Village गावाचे नाव	Distributing पाणी वाटणाऱ्या		Survey No. सव्हे नंबर	Pot No. पोट नंबर	Total area of Survey No. or Pot No. सव्हे नंबराचे अगर पोट नंबराचे एकूण क्षेत्र	Total area of the holding in Survey No. or Pot No. सव्हे नंबरा-तील अगर पोट नंबरातील मालकीचे एकूण क्षेत्र	Total area applied for मागणीचे क्षेत्र
	Channel No. पाटाचा नंबर	Outlet No. दरवाजाचा नंबर					
1	2	3	4	5	6	7	8
					A. g.	A. g.	A. g.

2. I am the _____ of the land for which water has been applied for above.
3. The name and address of person to whom and the manner in which the order on this application should be delivered are :—

Date 19 _____

Signature or left hand thumb impression of the applicant.

Signature of the witness.

Signature or left hand thumb impression of the occupant or joint occupants or superior holder or joint superior holders, in cases in which the applicant is not owner.

S (T)614—9

Forwarded for sanction as follows :—

- (1) Block No. (2) Block Plots Nos.
 (3) Area to be allotted— (4) Period—From to
 Acres Gunthas
 (5) Water rate per acre to be charged—Rs.

Date 19

Sanctioned.

Date 19

Sub-Divisional Officer,
Sub-Division.

Executive Engineer,
Division.

(Note.—Details of Security Bond to be furnished by non-owner applicants as per Instruction 7.)

Names of sureties (1) } in Form VIII.
 (2)

S. No. of given as security as per Form IX.

एक-चतुर्थांश उसाच्या ब्लॉकच्या मंजुरीची	समज	मावच्या तलाठ्याकडे खाला होण्याकरिता	कालवा	मावाचे नाव	अर्जाचा नंबर	सर्व्हे नंबर	पोट नंबर	अर्जदाराचे नाव	ब्लॉकचा मंजूर केलेला क्षेत्र	एकर मंटे	मंजुरीची मुदत	१५-२-१९	पासून	१४-२-१९	पर्यंत	अर्ज मंजुरीची तारीख	बेरा	कॅनल ऑफिसर	तारीख
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INSTRUCTIONS

1. This form is to be used for applications for the supply of water on the block system for the irrigation of sugarcane in those cases where the area of sugarcane permitted to be grown in the block is limited to one-fourth of the block area.
2. The application is to be submitted in duplicate to the Executive Engineer or to any officer authorised by him to receive such applications. It may be sent by hand, presented personally or sent by post.
3. When order is passed, the duplicate form will be returned to the applicant endorsed with the Executive Engineer's final order.
4. The applicant should note in the space provided at No. 3 on the form the name and address of the person to whom this order is to be given and whether should be sent by post or delivered from any canal office, or kept at any office to be called or, postal intimation being sent when it is ready for delivery.

5. No sanction will ordinarily be given for the irrigation of (1) the sole occupant or all joint occupants, (2) the sole superior holder or all joint superior holders, (3) a person having the right to carry on irrigated cultivation of the land for the period of the, sanction, of (4) a person duly authorised on behalf of any of these to receive such sanction.

6. The applicant must state at No. 2 on the form the nature of his interest in the land or of his authority to apply for sanction for carrying on irrigated cultivation in the land.

7. Any applicant may be required to furnish a Bond in Form VIII executed by two suitable sureties or execute a mortgage bond in Form IX as security for the payment of all amounts which may become due in respect of the water to be supplied under the sanction. He may also be required to obtain the assent of any person having an interest in the land to the grant of sanction to him.

8. Sanction will be refused for the irrigation of any land which is found to be unsuitable for this form of irrigation.

9. The Executive Engineer will sanction blocks subject to a minimum of and in multiples of 1½ acres. The different half-acre plots forming a block may not be contiguous but must be on the same outlet.

CONDITIONS

1. The area of sugarcane shall not exceed one-fourth of the total area of the block except as provided below :—

When new sugarcane is to be planted at some time before a standing crop in the same block is cut, permission will be given for such planting, although the total area of the standing crop and the newly planted crop exceeds one-fourth of the block area, on the following conditions, and in the following circumstances :—

(1) that water is available after providing all supplies already sanctioned;

(2) that the giving of the additional supply required can be arranged for consistently with necessary arrangements for maintenance, repair and working of the canal;

(3) that if the standing sugarcane crop has been planted between a date which may be notified from time to time and 31st August next following permission shall not be given for the planting of such new sugarcane crop before the break of the monsoon in the following year;

(4) that if the standing cane crop has been planted between 1st September and a subsequent date which may be notified from time to time permission shall not be given for the planting of such new sugarcane before the standing cane crop is 9 months old;

(5) that the area of new sugarcane shall not exceed the area of standing sugarcane which satisfies the conditions (3) and (4);

(6) that the application is made on Form VI for the supply of water required in addition to that provided by the original sanction. The charge will be the sugarcane rate for the excess of sugarcane area over one-fourth and for the period of over-planting applied for.

2. No second ratoon of sugarcane shall be allowed. Water shall not be supplied to any piece of land for irrigation more than three sugarcane crops during any period of five irrigation years.

3. To the remaining three-fourth area of the block, water shall be given for irrigation for about eight months, from 15th June (if water be available) or from the break of the monsoon till the 14th February following. This area shall not be irrigated either from the canals or wells between the 15th February and the 14th June of the following year except as provided below :—

If water is available, sanction shall be given on Form VI to pre-seasonal waterings subject to the following conditions :—

(1) No water should be supplied before 25th April.

(2) Not more than three-fourth of the whole block area shall be under irrigation at one time whether with canal or well water :

Provided that if water is available, sanction shall be given with effect from 25th May to early watering in the remaining one-fourth of the area of green manure crops only.

S (T)-614-9-a

4. If sugarcane is not grown on the full one-fourth area of the block area, twice the area in units not so utilised may be planted with other crops (excluding long-term fruit trees and pan gardens). If sugarcane or other crops in lieu thereof fail, a similar or lower rated crop or a succession of such crops may be planted on the same or any other equal area of the block in lieu thereof.

5. The block rate shall be payable for the whole area for which the sanction for the supply of water is in force without reference to the nature or extent of irrigated cultivation within the block. If in any particular year the applicant is unable to irrigate the whole or a part of the block for which water has been sanctioned, he may be granted exemption from the water rates payable in respect of such whole or part of the block, as the case may be, provided that he applies on Form X for such exemption from water rates before the dates specified below and that the proportion of sugarcane to other crops is not thereby increased in the area that remains over after the said exemption—

(i) For the first year of the block period ... Within one month from the date of sanction.

(ii) For subsequent years of the block period. Before 15th November preceding the year beginning from February 15th for which exemption is required.

6. The block may be cancelled at the request of the block-holder—

(a) from the beginning of the first year if he applies for cancellation within one month from the date of sanction;

(b) during the remaining period of sanction if he gives notice of cancellation in writing before the 15th November preceding the year beginning from February 15th from which the block is not required :

Provided that the Executive Engineer may at any time after giving twelve months notice cancel any block or any part of a block if in his opinion further continuance of supply to it is objectionable.

7. When exemption from water rate is granted in accordance with condition 5 subsequent permission to irrigate the whole or part of the block area so exempted shall, if water be available, be given only at $1\frac{1}{4}$ times the block rate, subject to the proviso that if it is desired subsequently to irrigate seasonal or two season crops only in the exempted portion permission may be granted at the sanctioned rates provided that an application in Form VII is received before the date fixed in accordance with rule 5(1) of the Bombay Canal Rules, 1934.

8. When a sugarcane block is cancelled at the request of the irrigator under condition 6 a further supply of water for the irrigation of sugarcane within the area of the cancelled block shall not be sanctioned within a period of one year from the date of cancellation.

9. The block sanction is liable to be cancelled or the supply to any crop irrigated under the sanction is liable to be withheld or stopped entirely without any previous notice for breach of any of the above conditions or any rule of the Bombay Canal Rules, 1934.

एक-चतुर्थी उसाच्या ब्लॉकचा अर्ज दिल्याबाबत अर्जदारास देण्याची पावत

कालवा

गावाचे नाव

अर्जदाराचे नाव

सर्व्हे नंबर

पोट नंबर

अर्जाचा तारीख

अर्ज पोहोचल्याची तारीख व येरा

अर्ज देणाऱ्या अंमलदाराची सही

FORM IV

(Original)

Form of application for water for Irrigation in Fruit Blocks

No. of application.

To—The Executive Engineer,,

Division.

I, _____, resident of _____ Taluka _____ District _____, make this application for the supply of water from the _____ canal for _____ years in succession from 15th February 19 _____ to 14th February 19 _____ subject to the provisions of the Bombay Irrigation Act, 1879, and of any other law for the time being in force relating to irrigation, and on the Bombay Canal Rules, 1934, to which I agree, for the purpose of irrigating the land hereinafter described namely :—

Name of Village गावाचे नाव	Distributing पाणी वाटणाऱ्या		Survey No. सर्व्हे नंबर	Pot No. पोट नंबर	Total area of Survey No. or Pot No. सर्व्हे नंबरचे अगर पोट नंबरचे एकूण क्षेत्र	Total area of the holding in Survey No. or Pot No. सर्व्हे नंबरातील अगर पोट नंबरातील मालकीचे एकूण क्षेत्र	Area applied for in the block ब्लॉकात मागणीचे क्षेत्र
	Channel No. पाटाचा नंबर	Outlet No. दरवाजाचा नंबर					
1	2	3	4	5	6	7	8
					A. g.	A. g.	A. g.

2. I am the _____ of the land for which water has been applied for above.
3. The name and address of person to whom and the manner in which the order on this application should be delivered :—

Date 19.

Signature or left hand thumb impression of the applicant.

Signature of the witness.

Signature or left hand thumb impression of the occupant or joint occupants or superior holder or joint superior holders in cases in which the applicant is not the owner.

Forwarded for sanction as follows :—

(1) Fruit Block No. _____ (2) Block Plots Nos. _____
(3) Area to be sanctioned—A. G. _____ (4) Period of sanction—From _____ To _____
(5) Water rates to be charged per acre—Rs. _____

Date 19 _____ Sub-Divisional Officer, _____ Sub-Division.

Sanctioned, _____ Executive Engineer, _____ Division.

Date 19 _____

(Note.—Details of Security bond to be invariably furnished by non-owner applicants as per Instruction 7.)

Names of sureties (1) } As per Form No. VIII.
(2) }

S. No. of given as security as per Form IX.

फळसाडाचा ब्लॉक मंजूर केल्याची समज
गावच्या तलाठ्याकडे पाठविण्याकालिता
कालवा
अर्जाचा नंबर
गावाचे नाव
सव्हे नंबर
पोट नंबर
अर्जदाराचे नाव
ब्लॉक मंजूर केलेले क्षेत्र ए. मं.
मंजुरीची मुदत
१५-२-१९ पासून
१४-२-१९ पर्यंत
मंजुरीची तारीख व शेरा
कॅनेल ऑफिसर.
तारीख

INSTRUCTIONS

1. This form is to be used for the irrigation of trees with normal life of 15 years or more, i. e., excluding plantains, papayas and similar short lived species, in areas in which water can ordinarily be supplied at regular intervals throughout the year.
2. The application is to be submitted in duplicate to the Executive Engineer or to any officer authorised by him to receive such applications. It may be sent by hand, presented personally or sent by post.
3. When order is passed, the duplicate form will be returned to the applicant endorsed with the Executive Engineer's final order.
4. The applicant should note in the space provided at No. 3 on the form the name and address of the person to whom the order of the Executive Engineer is to be given and whether the order should be sent by post or delivered from any canal office or kept at any office to be called for, postal intimation being sent when it is ready for delivery.
5. No sanction will ordinarily be given for the irrigation of any land to any person other than (1) the sole occupant or all joint occupants, (2) the sole superior holder or all joint superior holders, (3) a person having the right to carry on irrigated cultivation of the land for the period of the sanction, or (4) a person duly authorised on behalf of any of these to receive such sanction.
6. The applicant must state at No. 2 on the form the nature of his interest in the land or of his authority to apply for sanction for carrying on irrigated cultivation in the land.
7. Any applicant may be required to furnish a Bond in Form VIII executed by two suitable sureties or execute a mortgage bond in Form IX as security for the payment of all amounts which may become due in respect of the water to be supplied under the sanction. And he may also be required to obtain the assent of any person having an interest in the land to the grant of sanction to him.
8. Sanction will be refused for the irrigation of any land which is found to be unsuitable for his form of irrigation.
9. The Executive Engineer will ordinarily sanction areas which are multiples of half an acre.
10. Water passes in respect of this form shall not be granted for a period extending beyond twelve years after the 14th February of the year in which the next revision of water rates falls due.

CONDITIONS

1. The water rates shall be payable provided water is available for the whole area for which the sanction for the supply of water is in force without reference to the nature or extent of irrigated cultivation within the block. The applicant may, however, terminate the block agreement by giving six months' notice in writing.
2. New trees may without special permission be planted to replace those that have died on the distinct understanding that this shall in no way entitle the applicant to an extension of the period of sanction.
3. If the kind of fruit trees applied for and sanctioned do not thrive and another kind is to be grown, the applicant may, after giving three months' notice in writing to the Executive Engineer, grow in lieu thereof any other kind of fruit trees unless the Executive Engineer has within that time cancelled the pass. Also if for any reason the pass for fruit trees cannot be utilised for fruit trees for any period the applicant may, after giving a week's notice in writing to the Executive Engineer, grow in lieu thereof any other short lived perennials or season crops.
4. If in any particular year the person on whose application the supply is sanctioned is unable to irrigate the whole or a part of the block for which water has been sanctioned he may be granted exemption from the water rates payable in respect of such whole or part of the block, as the case may be, provided that he applies on Form X for such exemption from water rates before the dates specified below :—

- (i) For the first year of the block period .. Within one month from the date of sanction.
- (ii) For subsequent years of the block period .. Before 15th November preceding the year beginning from February 15th from which exemption is required.

1 [Such exemption shall not be granted for more than two times in sanctioned block period.]

5. When exemption from water rate has been sanctioned in accordance with condition 4, subsequent permission to irrigate the area so exempted in the cold and hot weather seasons shall, if water be available be given only at $1\frac{1}{2}$ times the rate prescribed for the respective seasons.

6. A block may be cancelled at the request of the block-holder—

- (a) from the beginning of the first year if he applies for cancellation within one month from the date of sanction ;
- (b) during the remaining period of sanction if he gives notice of cancellation in writing before the 15th November preceding the year beginning from February 15th from which the block is not required ;

Provided that the Executive Engineer may at any time after giving twelve months' notice cancel any block or any part of a block if in his opinion further continuance of supply to it is objectionable.

7. The block sanction is liable to be cancelled or the supply to any crop irrigated under the sanction is liable to be withheld or stopped entirely without any previous notice for breach of any of the above conditions or any rule of the Bombay Canal Rules, 1934.

फळसाडाचा नमुना नंबर ४ मधील
अर्ज पोचल्याची पावती
कालवा
गावाचे नाव
अर्ज नंबर
सव्हे नंबर
पोट नंबर
अर्जदाराचे नाव
मागणीचे क्षेत्र
मागणीप्रमाणे मुदत
१५-२-१९ पासून
१४-२-१९ पर्यंत
अर्ज पोचल्याची तारीख व शेरा
अर्ज देणाऱ्या अंमलदाराची सही

1 Ins. by G. N. of 15-12-1961.

FORM V
(Original)

Form of application for water for Irrigation in Garden Blocks

No. of application.

To—The Executive Engineer,

Division.

I,

, resident of

, Taluka

District

, make this application for the supply of water from the canal for years in succession from 15th February 19 subject to the provisions of the Bombay Irrigation Act, 1879, and of any other law for the time being in force relating to irrigation, and on the Bombay Canal Rules, 1934, to which I agree, for the purpose of irrigating the land hereafter described namely :—

Name of village गावाचे नाव	Distributing पाणी वाटणाऱ्या		Survey No. सर्व्हे नंबर	Pot No. पोट नंबर	Total area of Survey No. or Pot No. सर्व्हे नंबरचे अगर पोट नंबरचे एकूण क्षेत्र	Total area of the holding in Survey No. or Pot No. सर्व्हे नंबरतील अगर पोटनंबर- तील मालकीचे एकूण क्षेत्र	Area applied for in the block ब्लॉकत मागणीचे क्षेत्र
	Channel No. पाटाचा नंबर	Outlet No. दरवाजाचा नंबर					
1	2	3	4	5	6	7	8
					A. g.	A. g.	A. g.

2. I am the _____ of the land for which water has been applied for above.

3. The name and address of person to whom and the manner in which the order on this application should be delivered are :—

Date 19

Signature or left hand thumb
impression of the applicant.

Signature of the witness.

Signature or left hand thumb impression of the
occupant or joint occupants or superior holder
or joint superior holders in cases in which the
applicant is not the owner.

Forwarded for sanction as follows :—

- (1) Garden Block No. (2) Block Plots Nos.
(3) Area to be sanctioned—A. g. (4) Period of sanction—From To
(5) Water rates to be charged per acre—Rs.

Date 19 Sub-Divisional Officer, Sub-Division.

Sanctioned.
Date 19 Executive Engineer, Division.

(Note.—Details of Security bond to be invariably furnished by non-owner applicants as per Instruction 7.)

Names of sureties (1)
(2)

} As per Form No. VIII.

S. No. of

given as security as per Form IX.

इतर बारमाही पिकांचा नमुना नंबर ५
मधील ब्लॉकांचा अर्ज मंजूर केल्याची समज
(गावच्या तलाटशाकडे पाठविण्याकरिता)

कालवा
अर्जाचा नंबर
गावाचे नाव
सर्व्हे नंबर
पोट नंबर
अर्जदाराचे नाव
ब्लॉकत मंजूर केलेले क्षेत्र
मंजुरीची मुदत
१५-२-१९
१४-२-१९
मंजुरीची तारीख व श्रेय
कॅनॉल ऑफिसर.
तारीख

INSTRUCTIONS

1. This form is to be used for the irrigation of perennial crops other than sugarcane, pan or long term fruit trees in areas in which water can ordinarily be supplied at regular intervals throughout the year.

2. The application is to be submitted in duplicate to the Executive Engineer or to any officer authorised by him to receive such applications. It may be sent by hand, presented personally or sent by post.

3. When order is passed, the duplicate form will be returned to the applicant endorsed with Executive Engineer's final order.

4. The applicant should note in the space provided at No. 3 on the form the name and address of the person to whom the order of the Executive Engineer is to be given and whether the order should be sent by post or delivered from any canal office, or kept at any office to be called for, postal intimation being sent when it is ready for delivery.

5. No sanction will ordinarily be given for the irrigation of any land to any person other than (1) the sole occupant or all joint occupants, (2) the sole superior holder or all joint superior holders, (3) a person having the right to carry on irrigated cultivation of the land for the period of the sanction, or (4) a person duly authorised on behalf of any of these to receive such sanction.

6. The applicant must state at No. 2 on the form the nature of his interest in the land or of his authority to apply for sanction for carrying on irrigated cultivation in the land.

7. Any applicant may be required to furnish a Bond in Form VIII executed by two suitable sureties or execute a mortgage bond in Form IX as security for the payment of all amounts which may become due in respect of the water to be supplied under the sanction. He may also be required to obtain the assent of any person having an interest in the land to the grant of sanction to him.

8. Sanction will be refused for the irrigation of any land which is found to be unsuitable for this form of irrigation.

9. The Executive Engineer will ordinarily sanction areas which are multiples of half an acre.

10. Water passes in respect of this form shall not be granted for a period extending beyond the period of the sugarcane block sanctioned on the canal concerned at the time of sanctioning this form. If the sanctioned period of the sugarcane blocks at the time exceeds three years this form shall not be sanctioned for a period less than three years.

खाली दाखल केल्याप्रमाणे मंजुरीकरिता रवाना :—

- (१) ब्लॉक नंबर. (२) ब्लॉक प्लॉट नंबर.
(३) मंजूर करावयाचे क्षेत्र—एकर गुठे. (४) मंजुरीची मुदत— पासून पर्यंत.
(५) एकरी आकारावयाच्या पाणीपट्टीचा दर—रु.

तारीख माहे सन १९ . सब-डिव्हिजनल ऑफिसर, सब-डिव्हिजन.

“मंजूर.”

तारीख माहे सन १९ . एक्झिक्युटिव्ह इंजिनियर, डिव्हिजन.

टीप.—सूचना नं. ७ प्रमाणे मालक नसणाऱ्या अर्जदारांनी दावयाच्या जामीन-कदब्याचा तपशील.

जामीन राहणाऱ्यांनी (१)
(२) } नमुना नंबर ८ प्रमाणे.

नमुना नंबर ९ प्रमाणे तारणादाखल दिलेल्या चा सर्व्हे नंबर

गार्डन व सीझनल (बागायती व हंगामी)
ब्लॉकच्या मंजुरीची समज
(मावच्या तलाठ्याकडे रवाना
होण्याकरिता)

कालवा—
मावाचे नाव—
अर्ज-नंबर—
सर्व्हे नंबर—
प्लॉट नंबर—
अर्जदाराचे नाव—
ब्लॉकचा मंजूर केलेला क्षेत्र—
एकर गुठे
मंजुरीची मुदत—
१५-२-१९
१४-२-१९
मंजुरीची तारीख
शेरा

कॅनॉल ऑफिसर.

तारीख माहे सन १९

सूचना

१. ब्लॉकच्या एकूण क्षेत्रापैकी निम्म्या क्षेत्रात (१) इतर बारमाही पिकांना व (२) राहिलेल्या निम्म्या क्षेत्रात पावसाळी व रबी हंगामातील हंगामी पिकांना पाणी मागण्यासाठी हा नमुना उपयोगात आणावा.

२. अर्जाच्या दोन प्रती एक्झिक्युटिव्ह इंजिनियर, किंवा असा अर्ज घेण्यास त्याने अधिकार दिलेला इतर कोणताही अंमलदार यांकडे सादर केल्या पाहिजेत. त्या कोणा हाती नेऊन द्याव्यात किंवा स्वतःच हजर कराव्यात किंवा पोस्टाने पाठवाव्यात.

३. हुकूम झाल्यानंतर नमुन्याची दुसरी प्रत एक्झिक्युटिव्ह इंजिनियरच्या अखेरच्या हुकुमाचा शेरा देऊन अर्जदाराकडे परत पाठविण्यात येईल.

४. नमुन्याची नोंद नंबर ३ मध्ये राखून ठेवलेल्या जागेत, अर्जदाराने, त्या अर्जावरील हुकूम ज्या इसमास द्यावयाचा असेल त्याचे नाव व पत्ता यांची नोंद करून ठेवली पाहिजे. त्याचप्रमाणे तो पोस्टामार्फत किंवा कोणत्याही कॅनॉल ऑफिसरकडून दावयाचा, किंवा पोस्टामार्फत हुकूम तयार झाल्याची सूचना दिल्यावर तो नेईपर्यंत कोणत्या ऑफिसात ठेवावयाचा या गोष्टीची नोंद करून ठेवली पाहिजे.

५. (अ) एकटाच खातेदार किंवा सर्वे समायिक खातेदार, (ब) एकटाच वरिष्ठ धारण करणारा किंवा सर्वे समायिक वरिष्ठ धारण करणारे, (क) मंजूर झालेल्या मुदतीत जमीन भिजवून मशागत करण्याचा हुक्म असेल असा इसम, किंवा (ड) अशी मंजुरी मिळण्यास या इसमापैकी कोणत्याही इसमाच्या वतीने योग्य रीतीने अधिकार मिळाला असेल असा इसम, याशिवाय कोणत्याही इसमास कोणतीही जमीन भिजविण्यासाठी पाणी मिळण्याकरिता कोणत्याही अर्जास मंजुरी मिळणार नाही.

६. नमुन्यातील नोंद नंबर २ मध्ये अर्जदाराने जमिनीमध्ये असणारा आपला हितसंबंध कोणत्या प्रकारचा आहे, किंवा जमीन भिजवून मशागत करण्याकरिता पाण्याची मंजुरी मिळविण्यासाठी अर्ज करण्याचा अधिकार आपणास कसा पोहोचतो, याविषयी लिहिले पाहिजे.

७. ह्या मंजुरीप्रमाणे पुरवावयाच्या पाण्याबद्दलच्या देण्याच्या सर्व रकमेबद्दल तारण म्हणून कोणत्याही अर्जदाराला नमुना नंबर ८ प्रमाणे योग्य जामीन राहणाऱ्या इसमांनी सही करून पुरा केलेला जामीन-कदबा द्यावा लागेल, किंवा नमुना नंबर ९ प्रमाणे राहण खत करून द्यावे लागेल. त्याचप्रमाणे जमिनीमध्ये हितसंबंध असणाऱ्या कोणत्याही इसमाची त्याला मंजुरी मिळण्यास संमती त्याने मिळविली पाहिजे.

८. अशा रीतीने पाणी दिले जाण्यास जी नमान अयोग्य आहे असे वाटेल त्या जमिनीस पाणी देण्याची मंजुरी नाकारण्यात येईल.

९. कमीत कमी २० गुठे व २० गुंठ्यांच्या कोणत्याही पटीत असलेले ब्लॉक क्षेत्र, एक्झिक्युटिव्ह इंजिनियर याचेकडून मंजूर होईल.

शर्ती

१. या ब्लॉकातील भाजीपाला आणि कमी मुदतीची बारमाही बागायती पिके यांचे क्षेत्र ब्लॉकच्या वट क्षेत्राच्या निम्म्याहून अधिक असू नये. अस, पानमळे व दीर्घ मुदतीची फळझाडे, फुलझाडे लावण्याची परवानगी दिली जाणार नाही.

२. पाणी मिळण्यासारखे असेल तर तारीख १५ जूनपासून अगर पावसाळा सुरू झाल्यापासून ते पुढील १४ फेब्रुवारीपर्यंत विशेषतः धान्य-पिकांना, बैरणीच्या पिकांना किंवा त्यासारख्या इतर पिकांना, ब्लॉकच्या राहिलेल्या निम्म्या क्षेत्रात पाणी दिले जाईल. कोणत्याही वर्षी हे क्षेत्र, तारीख १५ फेब्रुवारी ते १४ जूनपर्यंत कॅनॉलच्या अगर विहिरीच्या पाण्याने भिजविता कामा नये.

३. ब्लॉकातील पाणी देण्यात येणाऱ्या पिकांचे स्वरूप अथवा क्षेत्र, यांचा विचार न करता, ज्या क्षेत्रास पाणी देण्याची परवानगी मिळाली असेल त्या संबंध क्षेत्रावहल ब्लॉक-रेट भरवा लागेल. जर कोणत्याही विशिष्ट वर्षात, अर्जदारास ज्या ब्लॉककरता पाण्याची मंजुरी मिळाली असेल त्या संबंध ब्लॉकास किंवा त्याच्या भागास पाणी पुरविता आले नसेल तर, त्यास प्रसंगा-प्रमाणे अशा सर्व ब्लॉकच्या किंवा त्याच्या भागाच्या संबंधात द्यावयाच्या पाणी-पट्टीची माफी मिळेल. मात्र त्याने खाली निर्दिष्ट केलेल्या तारखांपूर्वी पाणी-पट्टीच्या अशा माफीकरता नमुना नंबर १० मध्ये अर्ज केला पाहिजे :—

(१) ब्लॉकच्या मुदतीच्या पहिल्या वर्षाकरिता.—मंजुरी मिळाल्याच्या तारखेपासून एक महिन्याचे आत.

(२) ब्लॉकच्या मुदतीतील पुढील वर्षाकरिता.—ज्या वर्षास तारीख १५ माहे फेब्रुवारीपासून माफी पाहिजे असेल त्याच्या अगोदरच्या तारीख १५ नोव्हेंबरपूर्वी.

४. ब्लॉक धारण करणाऱ्याच्या विनंतीवरून कोणताही ब्लॉक :—

(अ) जर तो रद्द करण्याचा अर्ज, मंजुरीच्या तारखेपासून एक महिन्याचे आत करील तर पहिल्या वर्षाच्या सुरुवातीपासून;

(ब) ब्लॉक नको असलेल्या तारीख १५ माहे फेब्रुवारीपासून सुरू होणाऱ्या वर्षाच्या लगत-पूर्वीच्या नोव्हेंबर महिन्याच्या १५ व्या तारखेपूर्वी जर तो ब्लॉक रद्द करण्यासाठी लेखी नोटीस देईल तर, मंजुरीच्या राहिलेल्या मुदतीत रद्द करण्याचा अधिकार आहे.

मात्र जर एक्झिक्युटिव्ह इंजिनियरच्या मते, कोणत्याही वेळी कोणत्याही ब्लॉकला किंवा त्याच्या भागाला, त्यानंतर पाण्याचा पुरवठा चालू ठेवणे कोणत्याही कारणास्तव हरकतीस पात्र असेल तर बारा महिन्यांची नोटीस देऊन, सदरहू ब्लॉक अगर त्याचा भाग रद्द करण्याचा अधिकार असेल.

५. वरील शर्त नंबर ३ प्रमाणे पाणी-पट्टीची माफी देण्यात आली असेल तेव्हा, अशा रीतीने माफी दिलेल्या ब्लॉकचे संबंध क्षेत्र किंवा त्याचा भाग, भिजविण्यासाठीची त्यानंतरची परवानगी पाणी मिळण्यासारखे असेल तर, ब्लॉक-रेटच्या १३ पट दराने देण्यात येईल.

६. जेव्हा शर्त नंबर ४ अन्वये बागाइतदाराच्या विनंतीवरून ब्लॉक रद्द करण्यात आला असेल तेव्हा, रद्द केलेल्या ब्लॉकच्या क्षेत्रात जमीन भिजविण्याकरता पाण्याचा पुरवठा पुन्हा मिळविण्या-विषयीची विनंती, ब्लॉक रद्द झाल्याच्या तारखेपासून एक वर्षाचे आत मान्य केली जाणार नाही.

७. वरील शर्तीपैकी कोणत्याही शर्तीचे किंवा सन १९३४ च्या मुंबईच्या कालव्याबाबत कानूनी कोणत्याही कानूने उल्लंघन झाल्यास, कोणत्याही प्रकारची आमाऊ नोटीस न देता, ब्लॉकची मंजुरी रद्द केली जाण्यास अगर त्या मंजुरीनुसार कोणत्याही पिकास पुरविण्यात येणारे पाणी तात्पुरते थांबविले जाण्यास किंवा पूर्णपणे बंद केले जाण्यास पात्र राहील.

८. ब्लॉकच्या मुदतीत, ब्लॉकात (जुने बारमाही पीक उभे असताना) कोणतेही नवीन बारमाही पीक करण्यास पाणी पाहिजे असेल तेव्हा अशा नवीन पिकास नमुना नंबर ६ वर, जुन्या उभ्या बारमाही पिकांचा ओव्हरलॅप म्हणून मंजुरी मिळेल. जुने उभे पीक ओव्हरलॅपच्या मंजुरीच्या मुदतीत काढून टाकावयास पाहिजे. ओव्हरलॅपच्या मुदतीकरता चालू दराने जादा आकारणी करण्यात येईल. जेव्हा पाणी मिळण्यासारखे असेल तेव्हाच अशा ओव्हरलॅपला परवानगी दिली जाईल. योग्य परवानगी नसताना ल.गवड केल्यास ती विगारपरव.न. म्हणून समजली जाईल. अशा प्रकारचा ओव्हरलॅप ब्लॉकच्या मंजुरीच्या मुदतीत साधारणपणे फक्त दोनदाच दिला जाईल.

अर्ज नंबर

नमुना नं. ५-अ

फेळी, पर्वई, विलायती गवत यांसारख्या कमी मुदतीच्या बारमाही पिकांचे व हंगामी पिकांचे ब्लॉकसाठी करावयाचा पाणी-अर्ज

भाग, यांस

मे. एक्झिक्युटिव्ह इंजिनियर, राहणार तालुका
मी अर्ज करितो की, यात यापुढे वर्णन केलेल्या जमिनीस पाणी-पुरवठ्यासाठी जिल्हा अर्ज करितो की, यात यापुढे वर्णन केलेल्या जमिनीस पाणी-पुरवठ्यासाठी तारीख १५ माहे फेब्रुवारी सन १९ पासून सुरू होऊन तारीख १४ माहे फेब्रुवारी सन १९ रोजी संपणाऱ्या लागोपाठ वर्षाकरिता सन १८७९ च्या मुंबई इरिगेशन अक्ट व त्या त्या वेळी अंमलात असलेला इरिगेशनसंबंधी कोणताही इतर कायदा, यांच्या ठरावास पात्र राहून, आणि सन १९३४ च्या मुंबईच्या कालव्याबाबत कानूने ठराव व या अर्जाचे मागील वाजूस निर्दिष्ट केलेल्या व मला मान्य असलेल्या शर्तीस पात्र राहून, कालव्याचे पाणी देण्याची मेहेरबानी करावी :—

Name of village गावाचे नाव	Distributing पाणी वाटणाऱ्या		Survey No. सर्व्हे नंबर	Pot No. पोट नंबर	Total area of Survey No. or Pot No. सर्व्हे नंबराचे अगर पोट नंबराचे एकूण क्षेत्र	Total area of the holding in S. No. or Pot No. सर्व्हे नंबरातील अगर पोट नंबरातील मालकीचे एकूण क्षेत्र	Total area applied for water supply अर्जात पाण्या-करिता मागणी केलेल्या जमिनीचे एकूण क्षेत्र	Period मुदत
	Channel No. पाटाचा नंबर	Outlet No. दर-वाजाचा नंबर						
१	२	३	४	५	६	७	८	९
					ए. गु.	ए. गु.	ए. गु.	

२. वरील अर्जात पाण्याकरिता मागणी केलेल्या जमिनीचा मी आहे.

३. ज्या इसमास व ज्या रीतीने या अर्जावरील हुकूम द्यावयाचा त्याचे नांव, पत्ता व रीत खाली लिहिल्याप्रमाणे आहेत :—

तारीख माहे सन १९

अर्जदाराची सही अगर त्याच्या डाव्या हाताच्या आंगठ्याचा ठसा.

साक्षीदाराची सही.

ज्या बाबतीत अर्जदार जमिनीचा मालक नसेल त्याबाबतीत जमिनीच्या खातेदाराची किंवा समाधिक खातेदाराच्या, किंवा वरिष्ठ धारण करणाऱ्याची किंवा वरिष्ठ धारण करणाऱ्यांच्या अनुक्रमे सही किंवा सह्या किंवा डाव्या हाताच्या आंगठ्याचा ठसा किंवा ठसे.

खाली दाखल केल्याप्रमाणे मंजुरीकरता रवाना :—

- (१) ब्लॉक नंबर (२) ब्लॉक प्लॉट नंबर.
 (३) मंजूर करावयाचे क्षेत्र—एकर गुंठे. (४) मंजुरीची मुदत— पासून पर्यंत
 (५) एकरी आकारावयाच्या पाणीपट्टीचा दर—र.

तारीख माहे सन १९ सब-डिव्हिजनल ऑफिसर, सब-डिव्हिजन

“मंजूर”

तारीख माहे सन १९ एक्झिक्युटिव्ह इंजिनियर, डिप्टिजन

टीप.—सूचना नंबर ७ प्रमाणे सालक नसणाऱ्या अर्जदारांनी दावयाच्या जामीन-कदव्याचा तपशील

जामीन राहणाऱ्यांची नावे — (१)
 (२) } नमुना नंबर ८ प्रमाणे.

नुमा नंबर ९ प्रमाणे तारणादाखल दिलेल्या चा सर्व्हे नंबर.

गार्डन व सीझनल (बागायती व हंगामी) ब्लॉकचा अर्ज दिल्याबद्दल अर्जदारास देण्याची पावती

कालवा—
 गावाचे नाव—
 अर्जदाराचे नाव—
 सर्व्हे नंबर—
 पोट नंबर—
 मागणीचे क्षेत्र—
 एकर गुंठे
 मागणीप्रमाणे मुदत—
 १९-२-१९ पासून
 १४-२-१९ पर्यंत
 अर्ज पोहोचल्याची तारीख
 शेरा
 अर्ज देणाऱ्या अंमलदाराची सही.

सूचना

१. ब्लॉकच्या एकूण क्षेत्रापैकी निम्म्या क्षेत्रात (१) इतर बारमाही पिकांना व (२) राहिलेल्या निम्म्या क्षेत्रात पावसाळी व रबी हंगामातील हंगामी पिकांना पाणी मागण्यासाठी हा नमुना उपयोगात आणावा.

२. अर्जाच्या दोन प्रती एक्झिक्युटिव्ह इंजिनियर, किंवा असा अर्ज घेण्यास त्याने अधिकार दिलेला इतर कोणताही अंमलदार यांचकडे सादर केल्या पाहिजेत. त्या कोणा हाती नेऊन दाव्यात किंवा स्वतःच हजर कराव्यात किंवा पोस्टाने पाठवाव्यात.

३. हुकूम झाल्यानंतर नमुन्याची दुसरी प्रत एक्झिक्युटिव्ह इंजिनियरच्या अखेरच्या हुकुमाच शेरा देऊन अर्जदाराकडे परत पाठविण्यात येईल.

४. नमुन्याची नोंद नंबर ३ मध्ये राखून ठेवलेल्या जागेत, अर्जदाराने, त्या अर्जावरील हुकूम ज्या इसमास दावयाचा असेल त्याचे नाव व पत्ता यांची नोंद करून ठेवली पाहिजे. त्याचप्रमाणे तो पोस्टामार्फत किंवा कोणत्याही कॅनॉल ऑफिसरकडून दावयाचा, किंवा पोस्टामार्फत हुकूम तयार झाल्याची सूचना दिल्यावर तो नेईपर्यंत कोणत्या ऑफिसात ठेवावयाचा या गोष्टींची नोंद करून ठेवली पाहिजे.

५. (अ) एकटाच खातेदार किंवा सर्व समायिक खातेदार, (ब) एकटाच वरिष्ठ धारण करणारा किंवा सर्व समायिक वरिष्ठ धारण करणारे, (क) मंजूर झालेल्या मुदतीत जमीन भिजवून मशागत करण्याचा हक्क असेल असा इसम, किंवा (ड) अशी मंजुरी मिळण्यास या इसमापैकी कोणत्याही इसमाच्या वतीने योग्य रीतीने अधिकार मिळाला असेल असा इसम, याशिवाय कोणत्याही इसमास कोणतीही जमीन भिजविण्यासाठी पाणी मिळण्याकरिता कोणत्याही अर्जास मंजुरी मिळणार नाही.

६. नमुन्यातील नोंद नंबर २ मध्ये अर्जदाराने जमिनीमध्ये असणारा आपला हितसंबंध कोणत्या प्रकारचा आहे, किंवा जमीन भिजवून मशागत करण्याकरिता पाण्याची मंजुरी मिळविण्यासाठी अर्ज करण्याचा अधिकार आपणास कसा पोहोचतो, याबिषयी लिहिले पाहिजे.

७. ह्या मंजुरीप्रमाणे दावयाच्या पाण्याबद्दलच्या देण्याच्या सर्व रकमेबद्दल तारण म्हणून कोणत्याही अर्जदाराला नमुना नंबर ८ प्रमाणे योग्य जामीन राहणाऱ्याच्या इसमांनी सही करून पुरा केलेला जामीन-कदवा सादर लागेल, किंवा नमुना नंबर ९ प्रमाणे गहाण खत करून दावे लागेल. त्याचप्रमाणे जमिनीमध्ये हितसंबंध असणाऱ्या कोणत्याही इसमाची त्याला मंजुरी मिळण्यास संमती त्याने मिळविली पाहिजे.

८. अशा रीतीने पाणी दिले जाण्यास जी जमीन अयोग्य आहे असे वाटेल त्या जमिनीस पाणी देण्याची मंजुरी नाकारण्यात येईल.

९. कमीत कमी २० गुंठे व २० गुंठ्यांच्या कोणत्याही पटीत असलेले ब्लॉक क्षेत्र, एक्झिक्युटिव्ह इंजिनियर यांचकडून मंजूर होईल.

शर्ती

१. या ब्लॉकातील भाजीपाला आणि कमी मुदतीची बारमाही बागायती पिके यांचे क्षेत्र ब्लॉकच्या वट क्षेत्राच्या निम्म्याहून अधिक असू नये. ऊस, पानमळे व दीर्घ मुदताचे फळझाडे, फुलझाडे लांबण्याची परवानगी दिली जाणार नाही.

२. पाणी मिळण्यासारखे असेल तर तारीख १५ जूनपासून अगर पावसाळा सुरू झाल्यापासून ते पुढील १४ फेब्रुवारीपर्यंत विशेषतः धान्य-पिकांना, वरीलच्या पिकांना किंवा त्यासारख्या इतर पिकांना, ब्लॉकच्या राहिलेल्या निम्न्या क्षेत्रात पाणी दिले जाईल. कोणत्याही वर्षी हे क्षेत्र, तारीख १५ फेब्रुवारी ते १४ जूनपर्यंत कॅनॉलच्या अगर विहिरीच्या पाण्याने भिजविता कामा नये.

३. ब्लॉकातील पाणी देण्यात येणाऱ्या पिकांचे स्वरूप अथवा क्षेत्र, यांचा विचार न करता, ज्या क्षेत्रास पाणी देण्याची परवानगी मिळाली असेल त्या संबंध क्षेत्राबद्दल ब्लॉक-रेट भरावा लागेल. जर कोणत्याही विशिष्ट वर्षात, अर्जदारास ज्या ब्लॉककरता पाण्याची मंजुरी मिळाली असेल त्या संबंध ब्लॉकास किंवा त्याच्या भागास पाणी पुरवितो आले नसेल तर, त्यास प्रसंगा-प्रमाणे अशा सर्व ब्लॉकच्या किंवा त्याच्या भागाच्या संबंधात द्यावयाच्या पाणी-पट्टीची माफी मिळेल. मात्र त्याने खाली निर्दिष्ट केलेल्या तारखांपूर्वी पाणी-पट्टीच्या अशा माफीकरता नमुना नंबर १० मध्ये अर्ज केला पाहिजे :—

(१) ब्लॉकच्या मुदतीच्या पहिल्या वर्षाकरिता.—मंजुरी मिळाल्याच्या तारखेपासून एक महिन्याचे आत;

(२) ब्लॉकच्या मुदतीतील पुढील वर्षाकरिता.—ज्या वर्षास तारीख १५ माहे फेब्रुवारीपासून माफी पाहिजे असेल त्याच्या अगोदरच्या तारीख १५ नोव्हेंबरपूर्वी.

४. ब्लॉक धारण करणाऱ्याच्या विनंतीवरून कोणताही ब्लॉक :—

(अ) जर तो रद्द करण्याचा अर्ज, मंजुरीच्या तारखेपासून एक महिन्याचे आत करील तर पहिल्या वर्षाच्या सुरुवातीपासून;

(ब) ब्लॉक नको असलेल्या तारीख १५ माहे फेब्रुवारीपासून सुरू होणाऱ्या वर्षाच्या लगत-पूर्वीच्या नोव्हेंबर महिन्याच्या १५ व्या तारखेपूर्वी जर तो ब्लॉक रद्द करण्यासाठी लेखी नोटीस देईल, तर, मंजुरीच्या राहिलेल्या मुदतीत रद्द करण्याचा अधिकार आहे.

मात्र जर एक्सक्युटिव्ह इंजिनियरच्या मते, कोणत्याही वेळी कोणत्याही ब्लॉकला किंवा त्याच्या भागाला, त्यानंतर पाण्याचा पुरवठा चालू ठेवणे कोणत्याही कारणास्तव हरकतीस पात्र असेल तर बारा महिन्यांची नोटीस देऊन, सदरहू ब्लॉक अगर त्याचा भाग रद्द करण्याचा अधिकार असेल.

५. वरील शर्त नंबर ३ प्रमाणे पाणी-पट्टीची माफी देण्यात आली असेल तेव्हा, अशा रीतीने माफी दिलेल्या ब्लॉकचे संबंध क्षेत्र किंवा त्याचा भाग, भिजविण्यासाठीची त्यानंतरची परवानगी पाणी मिळण्यासारखे असेल तर, ब्लॉक-रेटच्या १-पट दराने देण्यात येईल.

६. जेव्हा शर्त नंबर ४ अन्वये बागाइतदाराच्या विनंतीवरून ब्लॉक रद्द करण्यात आला असेल तेव्हा, रद्द केलेल्या ब्लॉकच्या क्षेत्रात जमीन भिजविण्याकरता पाण्याचा पुरवठा पुन्हा मिळविण्या-विषयीची विनंती, ब्लॉक रद्द झाल्याच्या तारखेपासून एक वर्षाचे आत मान्य केली जाणार नाही.

७. वरील शर्तीपैकी कोणत्याही शर्तीचे किंवा सन १९३४ च्या मुंबईच्या कालव्याबाबत कानूनी कोणत्याही काळूचे उल्लंघन झाल्यास, कोणत्याही प्रकारची आगाऊ नोटीस न देता, ब्लॉकची मंजुरी रद्द केली जाण्यास अगर त्या मंजुरीनुसार कोणत्याही पिकास पुरविल्यात येणारे पाणी तात्पुरते थांबविले जाण्यास किंवा पूर्णपणे बंद केले जाण्यास पात्र राहील.

८. ब्लॉकच्या मुदतीत, ब्लॉकात (जुने बारमाही पीक उभे असताना) कोणतेही नवीन बारमाही पीक करण्यास पाणी पाहिजे असेल तेव्हा अशा नवीन पिकास नमुना नंबर ६ वर, जुन्या उभ्या बारमाही पिकांचा ओव्हरलॅप म्हणून मंजुरी मिळेल. जुने उभे पीक ओव्हरलॅपच्या मंजुरीच्या मुदतीत काढून टाकावयास पाहिजे. ओव्हरलॅपच्या मुदतीकरता चालू दराने जादा आकारणी करण्यात येईल. जेव्हा पाणी मिळण्यासारखे असेल तेव्हा अशा ओव्हरलॅपला परवानगी दिली जाईल. योग्य परवानगी नसताना लागवड केल्यास ती बिगरपरवासा म्हणून समजली जाईल. अशा प्रकारचा ओव्हरलॅप ब्लॉकच्या मंजुरीच्या मुदतीत साधारणपणे फक्त दोनदाच दिला जाईल.

FORM VI

(Original)

Form of application for water for Additional waterings

No. of application

To—The Executive Engineer,

Division.

I, _____, resident of _____, Taluka _____, District _____, make this application for the supply of water from the _____ canal for the purpose of irrigating the undermentioned land hereinafter described subject to the provisions of the Bombay Irrigation Act, 1879 and any other law for the time being in force relating to irrigation and all the provisions of the Bombay Canal Rules, 1934 and subject to the conditions specified on the reverse of this application to which I agree.

Name of village गावाचे नाव	Distributing पाणी वाटणाऱ्या		Survey No. सर्व्हे नंबर	Pot No. पोट नंबर	Total area of Survey No. or Pot No. सर्व्हे नंबरचे अगर पोट-नंबरचे एकूण क्षेत्र	Total area of the holding in Survey No. or Pot No. सर्व्हे नंबरचा अगर पोट-नंबरातील मालकीचे एकूण क्षेत्र	Total area applied for पागणीचे क्षेत्र	Name of crop पिकाचे नाव	Period for which water is required ज्या मुदतीत पाणी पाहिजे ती मुदत
	Channel No. पाटाचा नंबर	Outlet No. दरवाजाचा नंबर							
1	2	3	4	5	6	7	8	9	10
					A. g.	A. g.	A. g.		

2. I am the _____ of the land for which water has been applied for above.

3. I hold a seasonal pass for the season of 19
Block pass for the year ending 14th February 19

I have submitted herewith a _____ block application for the years _____

4. The name and address of the person to whom and the manner in which the order on this application should be delivered are :—

Signature or left hand thumb impression of the applicant.

Signature of the witness.

Signature or left hand thumb impression of the occupant or joint occupants or superior holder or joint superior holders in cases in which the applicant is not the occupant or superior holder.

Forwarded for sanction as follows :—

- (1) Area to be sanctioned—A. g. (2) Period of sanction—From
To (3) Water rate to be charged per acre—Rs.

Date 19 Sub-Divisional Officer, Sub-Division.

Sanctioned.

Date 19 Executive Engineer, Division.

(Note.—Details of Security bond to be invariably furnished by non-owner applicants as per Instruction 6.)

Names of sureties (1) } As per Form No. VIII.
(2)

Survey No. of given as security as per Form IX.

पिक	हंगाम व मुदत	क्षेत्र	
		ए.	गुं.
पावसाळी			
रबी			
दुहंगामी			
उन्हाळी			
ऊस			
सामान्य बारमाही पिक.			
मंजुरीची तारीख व शेरा			
तारीख	माहे	सन	१९

कॅनॉल ऑफिसर.

INSTRUCTIONS

1. This form is to be used for additional waterings only, i. e., for waterings required for areas already sanctioned under any one of the other forms of applications laid down under rule 4 (3) of the Bombay Canal Rules, 1934, for short period not covered by the respective sanctions.
2. The application is to be submitted in duplicate to the Executive Engineer or to any officer authorised by him to receive such applications. It may be sent by hand, presented personally or sent by post.
3. When order is passed the duplicate form will be returned to the applicant endorsed with the Executive Engineer's final order.

4. The applicant should note in the space provided under entry No. 4 on the form the name and address of the person to whom the order of the Executive Engineer is to be given and whether the order should be sent by post, or delivered from any canal office, or kept at any office to be called for, postal intimation being sent when it is ready for delivery.

5. No sanction on this form will be given for the irrigation of any land for the irrigation of which a seasonal, a perennial or a block pass has not already been issued or a seasonal, perennial or a block application is not submitted along with this form. At No. 3 on the form the applicant must state the number and kind of pass he holds.

6. Any applicant may be required to furnish a Bond in Form VIII executed by suitable sureties or execute a mortgage bond in Form IX as security for the payment of all amounts which may become due in respect of the water to be supplied under the sanction. He may also be required to obtain the assent of any person having an interest in the land to the grant of sanction to him.

7. The Executive Engineer will ordinarily sanction areas which are multiples of half acre.

CONDITIONS

1. After an application has been sanctioned, full water rates shall be payable for the area and period sanctioned by the Executive Engineer whether the area is irrigated or not, provided water was available during the period. No water rate shall be charged in the case of perennial crops when the applicant gives a written intimation to the Executive Engineer within one month from the date of sanction to the application that water is not required.

2. The sanctioned area shall not be exceeded.

3. The sanction is liable to be cancelled or the supply to any crop irrigated under the sanction is liable to be withheld or stopped entirely without notice for breach of any rules of the Bombay Canal Rules, 1934, or of condition 2.

पिक	हंगाम व मुदत	क्षेत्र	
		ए.	गुं.
पावसाळी			
रबी			
दुहंगामी			
उन्हाळी			
ऊस			
सामान्य बारमाही पिके.			
अर्जची तारीख			
अर्ज मिळाल्याची तारीख व शेरा			
अर्ज देणाऱ्या वंमलदाराची सही.			

नमुना नंबर ६ मधील अर्ज मिळाल्याबाबत
अर्जदारास देण्याची पावती

कालवा
सर्व्हे नंबर
पोट नंबर
अर्जदाराचे नाव
मागणीप्रमाणे पिक, हंगाम व क्षेत्र

अर्ज देणाऱ्या वंमलदाराची सही.

FORM VII
(Original)

Ordinary application for water for irrigation

No. of application

To—The Executive Engineer,

Division.

I, _____, resident of _____, Taluka _____, District _____, make this application for the supply of water from the _____ canal for the purpose of irrigating the undermentioned land hereinafter described subject to the provisions of the Bombay Irrigation Act, 1879, and any other law for the time being in force relating to irrigation and all the provisions of the Bombay Canal Rules, 1934, and subject to the conditions specified on the reverse of this application to which I agree :—

Name of village गावाचे नाव	Distributing पाणी वाटणाऱ्या		Survey No. सव्हे नंबर	Pot No. पोटे नंबर	Total area of Survey No. or Pot No. सव्हे नंबरचे अगर पोटे नंबरचे एकूण क्षेत्र	Total area of the holding in Survey No. or Pot No. सव्हे नंबररातील अगर पोटे नंबररातील मालकीचे एकूण क्षेत्र	Total area applied for मागणीचे क्षेत्र	Name of crop पिकाचे नाव	Period for which water is required ज्या मुदतीत पाणी पाहिजे ती मुदत
	Channel No. पाटाचा नंबर	Outlet No. दरवाजाचा नंबर							
1	2	3	4	5	6	7	8	9	10
					A. G.	A. G.	A. G.		

2. I am the _____ of the land for which water has been applied for above.

3. I have paid all arrears of water rates up to and including the _____ season of 19 _____. I am in arrears of water rates for the _____ only.

4. The name and address of person to whom and the manner in which the order on this application should be delivered are :—

Date _____ 19 ____

Signature or left hand thumb impression of the applicant.

Signature of the witness

Signature or left hand thumb impression of the occupant or joint occupants or superior holder or joint superior holders in cases in which the applicant is not the occupant or superior holder.

Forwarded for sanction as follows :—

(1) Area to be sanctioned To _____ Date _____ 19 ____ Sanctioned. Date _____ 19 ____

(2) Period of sanction—From _____ Sub-Divisional Officer, _____ Sub-Division. Executive Engineer, _____ Division.

(3) Water rate to be charged per acre—Rs. _____

(Note.—Details of Security bond to be invariably furnished by non-owner applicants as per Instruction 7.)

Names of sureties (1) _____ (2) _____

As per Form No. VIII.

Survey No. _____ of _____ given as security as per Form IX.

मनुष्या नंबर ७ मंजूर झाल्याबत गावच्या तलावाकडे पाठविण्याची समज	कालवा	अर्जाचा नंबर	गावाचे नाव	सव्हे नंबर	पोटे नंबर	अर्जदाराचे नाव	मंजूर केलेले क्षेत्र	१ पाणी	पावसाळी	रबी	दोन हंगामी	उन्हाळी	उष्ण	साचाय बारसाही पिके	मंजुरीची तारीख व शेरा	तारीख
	मंजूर केलेले क्षेत्र	१ पाणी	पावसाळी	रबी	दोन हंगामी	उन्हाळी	उष्ण	साचाय बारसाही पिके	मंजुरीची तारीख व शेरा	तारीख						

INSTRUCTIONS

1. This form is to be used for such Irrigation only for which no other special form has been prescribed in rule 4 (3) of the Bombay Canal Rules, 1934.

2. The application is to be submitted in duplicate to the Executive Engineer or to any officer authorised by him to receive such applications. It may be sent by hand, presented personally or sent by post.

3. When order is passed the duplicate form will be returned to the applicant endorsed with the Executive Engineer's final order.

4. No sanction will ordinarily be given for the irrigation of any land to any person other than (1) the sole occupant or all joint occupants, (2) the sole superior holder or all joint superior holders, (3) a person having the right to carry on irrigated cultivation of the land for the period of the sanction, or (4) a person duly authorised on behalf of any of these to receive such sanction.

5. The applicant must state at No. 2 on the form the nature of his interest in the land or of his authority to apply for sanction for carrying on irrigated cultivation in the land. He must also state at No. 3 on the form the season upto and including which he has paid arrears of water rates. If he owes any water rates he must state the seasons or years for which he does so.

6. The applicant should note in the space provided at No. 4 on the form the name and address of the person to whom the order on this form is to be given and whether it should be sent by post, or delivered from any canal office, or kept at any office to be called for, postal intimation being sent when it is ready for delivery.

7. Any applicant may be required to furnish a Bond in Form VIII executed by two suitable sureties or execute a mortgage bond in Form IX as security for the payment of all amounts which may become due in respect of the water to be supplied under the sanction. And he may also be required to obtain the assent of any person having an interest in the land to the grant of sanction to him.

8. Sanction will be refused for the irrigation of any land which is found to be unsuitable for this form of irrigation.

9. Executive Engineer will ordinarily sanction areas which are multiples of half an acre.

CONDITIONS

1. After an application has been sanctioned, full water rates shall be payable for the area and period sanctioned by the Executive Engineer whether the area is irrigated or not, provided water was available during the period. No water rate shall be charged in the case of perennial crops when the applicant gives a written intimation to the Executive Engineer within one month from the date of sanction to the application that water is not required.

2. Each type of crop (namely, sugarcane, paddy, ordinary perennial, two season and seasonal) shall be grown only to the extent of the sanction shown on the pass, but an equal area of any lower rated type may be substituted.

3. The area sanctioned shall not be exceeded.

4. The sanction is liable to be cancelled or the supply to any crop irrigated under the sanction is liable to be withheld or stopped entirely without notice for breach of any rule of the Bombay Canal Rules, 1934, or of any of the conditions of this form of application.

Additional conditions 5, 6 and 7 for Irrigation Works mentioned in the schedule given below them.

5. Water shall be given for the whole season, if available, or at the discretion of the Executive Engineer, for as many waterings as may be possible.

6. Full water supply is not guaranteed but an intimation of the possibility of a shortage of water during the season for which application is made shall be given at the earliest date possible.

7. Where no permanent water channel exists, the irrigator shall allow the construction of a temporary channel through his land, if necessary along a line fixed by the Executive Engineer or his representative, for the benefit of irrigators whose fields are situated below his land.

SCHEDULE

Names of Tanks or Canals

Bhatodi Tank.	Kasurdi Tank.	Muchkundi Tank.
Ashti Tank.	Bhadalwadi Tank.	Shirsuphal Tank.
Koregaon Tank.	Matoba Tank.	Parsul Tank.
Pathri Tank.	Kadwa River Works.	Girna Left Bank Canal.
Jamda Canals.	Krishna Canal.	Hathmati and Khari Cut Canals.
Hartala Tank.	Rewari Canal.	Wangroli Tank.
Mhaswa Tank.	Upper Man River Works.	Savli Tank.
Lower Panjhir River Works.	Yerla River Irrigation Works.	Sait Tank.
Shahada Channel.	Chikhli Canal.	Tranza Nagamma Tank.
Maini Tank canals	Mhaswad Tank.	Futalao Tank.

Non-perennial section of the Mutha Canals.
Non-perennial section of the Godavari Canals.
Non-perennial sections of the Pravara Canals.
Non-perennial sections of the Nira Right Bank Canal.

Muvalia Tank.
Timba Tank.*
Goblaj Tank.
Galki Tank.

Condition 7 above and 8 below apply to Ekruk Tank in addition to conditions 1 to 4.

8. Water for any area of sugarcane sanctioned is subject to the condition that water is liable to be withheld from new sugarcane area after 31st May, if necessary. Each consecutive watering after 31st May shall require the sanction of the Executive Engineer. Such sanction shall be accorded if water is available in the tank for agricultural purposes but if it is insufficient at any time of the season all further waterings may be stopped and the irrigator shall not in that case claim compensation for any damage to the sugarcane crop due to shortage of water.

अर्जदारास अर्जे मिळाल्याबरोबर देण्याची पावती				नमुना नंबर ७	
कालवा				गुठे	
सह नंबर				एकर	
प्लॉट नंबर					
अर्जदाराचे नाव					
सामाजीचे क्षेत्र					
१ पाणी				..	
पावसाळी				..	
रबी				..	
दोन हंगामी				..	
उन्हाळी				..	
ऊस				..	
सामान्य बारमाही पिके				..	
अर्जाची तारीख					
अर्जे मिळाल्याची तारीख व शेरा					
अर्जे देणाऱ्या अंमलदाराची सही.					

*G.N., P.W.D., No. 2353/27, dated 19th March 1935.

FORM VII-A

(Original)

Application for supply of water free of charge for irrigation from Nallas, Rivers, Streams etc., vesting in the Public Works Department on which Government has not incurred any expenditure

No. of application :

To

The Executive Engineer, Dn.

I, resident of Taluka District make this application for the purpose of irrigating the undermentioned land herein after described subject to the provisions of the Bombay Irrigation Act, 1879, and Government orders issued thereunder from time to time for the supply of water from

..... River
..... Nalla
..... Bhudki
..... Drain
..... Tank

and subject to the conditions specified on the reverse of this application to which I agree. I attach a plan herewith showing the land proposed to be irrigated by me.

2. I am the of the land for which water has been applied for above.

3. The name and address of person to whom and the manner in which the order on this application should be delivered are :—

Date Month Year Signature or left hand thumb impression of the applicant

Signature of the Witness.

Signature or left hand thumb impression of the occupant or joint occupants or superior holder or joint superior holders in cases in which the applicant is not the occupant or superior holder.

Forwarded for sanction as follows :—

(1) Area to be sanctioned Acres Gunthas.
(2) Name of sanctioned crop
(3) Period of sanction From To
Date Month Year Sub-Divisional Officer,
..... Sub-Dn.
Sanctioned.
Date Month Year Executive Engineer.
..... Dn.

(Note.—Details of security bond to be invariably furnished by non-owner applicants as per details below).

Names of sureties (1)
(2) } Given as security as per Form No. IX.
Survey No. of

INSTRUCTIONS

1. This form is to be used for the permission to supply water from Rivers, Nallas, Streams, Bhuddies, Drains, Tanks vesting in the Public Works Department on which no expenditure has been incurred by Government.

2. This application shall be submitted in duplicate to the Executive Engineer or any officer authorised by him to receive such applications. It may be sent by hand, presented personally or sent by post.

3. This application shall be tendered three months in advance for the season in which the supply of water is required by the applicant.

4. No sanction will ordinarily be given for the irrigation of any land to any person other than (1) the sole occupant or all joint occupants, (2) the sole superior holder or all joint holders, (3) a person having the right to carry on irrigated cultivation of the land for the period of the sanction, or (4) a person duly authorised on behalf of any of these to receive such sanction.

5. The applicant should submit a plan of the land in the survey No. or survey Nos. concerned along with the application.

6. The applicant must state in paragraph 2 in the form of application the nature of his interest in the land or of his authority to apply for sanction for carrying on irrigated cultivation in the land. He must also state in paragraph 3 in the said form the name of person and his address on which the sanction is to be communicated.

7. On completion of the application and after due enquiry into the application, the Executive Engineer having regard to the existing riparian rights of the cultivators on the source of water may either sanction it fully or partly or reject it. In case the application is sanctioned a pass for the use of water shall be issued to the applicant. Such pass shall be valid only for the period specified in it. In case the application is rejected, the duplicate copy of the application shall be returned to the applicant after stating reasons for rejection.

8. Sanction shall be refused for the supply of water for growing crops where there is a danger of canal water being taken surreptitiously.

CONDITIONS

1. Sanction will be granted for the use of water free of charge for growing food and fodder crops including onions.

2. The applicant shall make a channel or channels for taking water to his lands at his own cost and responsibility.

3. Crops irrigated by the water supplied under Part IX of the Bombay Canal Rules, 1934, shall be separated from all crops irrigated by water supplied otherwise under the Act by at least 50' at all places.

4. The applicant shall not interfere with the natural drainage or artificial channels in utilising the water sanctioned for his lands.

5. When irrigation channels from canal run parallel to lift channels, they shall have an uncultivated dry strip of not less than 15 feet between the outer toes of the inner banks of the channels.

6. When canal water is crossed by lift channels, the crossing shall be of pacca masonry and pipe crossing which shall be to the entire satisfaction of the Canal Officer.

7. When water is allowed to be used by means of a pumping plant, the pumping or 'Take off' arrangement shall be beyond the radius of 300 feet from the edge of the canal boundary or Distributary boundary limit.

8. The area for which the water has been sanctioned by the Executive Engineer shall be marked on a plan which shall be signed by the applicant.

9. No claim for compensation on account of damage to crops due to the failure or deficiency of water shall be entertained.

10. For using water after the expiry of the period of the pass or without obtaining a pass for use of water or for breach of any of the aforesaid conditions the applicant shall be charged full water rates leviable, and shall also be liable to the penalties imposed under the provisions of the Bombay Irrigation Act, 1879, and the Rules framed thereunder.

11. No canal water shall be granted to or utilised for the areas brought under cultivation under the pass.

12. Areas of crops grown in excess of the sanctioned area shall be liable to be charged at full water rates leviable for using canal water and in addition the applicant shall be liable to penalties imposed for unauthorised irrigation under the Bombay Irrigation Act, 1879 and Rules framed thereunder.

13. No water shall be taken by the applicant before his application has been sanctioned and before a pass has been delivered to him.

नमुना नं. ७-अ

(मूळप्रत)

पब्लिक वर्क्स डिपार्टमेंटच्या स्वाधीन असणारे आणि ज्यावर सरकारने कोणताही खर्च केलेला नाही असे नाले, विहिरी, ओढे वगैरेतून जमीन मिजविण्यासाठी मोफत पाणीपुरवठा मिळण्याबद्दल करावयाचा अर्ज

अर्जाचा नंबर :

मे. एक्सिक्युटिव्ह इंजिनियर,

भाग, यास

मी,

, राहणार

, तालुका

जिल्हा

, विनंती अर्ज करतो की, यात पुढे नमूद

केलेल्या व वर्णन केलेल्या जमिनीतील पिकांना पाणी देण्याच्या कारणासाठी, सन १८७९ चा मुंबईचा इरिगेशन ॲक्ट याचे ठराव व त्याअन्वये वेळोवेळी काढलेले सरकारी हुकूम यांना पात्र ठेवून व ह्या अर्जाच्या पाठीमागील बाजूस निर्दिष्ट केलेल्या व मला कबूल असलेल्या शर्तीस पात्र ठेवून

..... नदी
..... नाला
..... भुडकी
..... ड्रेन
..... तलाव

यातून पाणी पुरविण्याची मेहेरबानी करावी. ज्या जमिनीतील पिकांना पाणी पुरविण्याचे मी योजिले आहे ती जमीन दर्शविणारा नकाशा यासोबत जोडला आहे.

२. ज्या जमिनीसाठी पाणी मिळावे म्हणून वरील अर्ज केला आहे त्या जमिनीचा मी आहे.

३. ज्या इसमाला ज्या रीतीने ह्या अर्जानुसार हुकूम मिळावा त्याचे नाव व पत्ता व रीत या गोष्टी खाली लिहिल्याप्रमाणे आहेत.

तारीख

माहे

सन

अर्जदाराची सही अगर त्याच्या डाव्या हाताच्या आंगठ्याचा ठसा.

साक्षीदाराची सही.

ज्या जमिनीचे बाबतीत अर्जदार जमिनीचा खातेदार नसेल अगर वरिष्ठ धारण करणारा नसेल अशा जमिनीचे बाबतीत जमिनीच्या खातेदाराची किंवा संयुक्त खातेदारांच्या किंवा वरिष्ठ धारण करणाऱ्यांची किंवा संयुक्त वरिष्ठ धारण करणाऱ्यांच्या अनुक्रमे सही किंवा सहा अगर डाव्या हाताच्या आंगठ्याचा ठसा अगर ठसे.

खाली दाखल केल्याप्रमाणे मंजुरीकरिता रवाना :-

(१) मंजूर करावयाचे क्षेत्र— एकर गंटे.
(२) मंजूर केलेल्या पिकाचे नाव— पर्यंत.
(३) मंजुरीची मुदत— पासून

सब-डिव्हिजनल ऑफिसर,
..... सब-डिव्हिजन.

तारीख

माहे

सन

मंजूर.

एक्सिक्युटिव्ह इंजिनियर,
..... डिव्हिजन.

तारीख

माहे

सन

(टीप.—मालक नसणाऱ्या अर्जदारांनी खालील तपशीलावरहुकूम हमेशा द्यावयाच्या जामीन-कदव्याचा तपशील).

जामीन राहणाऱ्यांची नावे

(१)

(२)

..... चा सव्हे नंबर.....

नमुना नंबर ९ प्रमाणे तारणादाखल दिलेला.

सूचना

१. पब्लिक वर्क्स डिपार्टमेंटच्या स्वाधीन असलेल्या आणि ज्यावर सरकारला कोणताही खर्च आलेला नाही अशा नद्या, नाले, ओढे, भुडक्या, ड्रेन, तलाव यातून पाणीपुरवठा मिळण्यासाठी परवानगी मागण्याकरिता हा नमुना उपयोगात आणावा.

२. हा अर्ज (अर्जाच्या दोन प्रती पाठवून) एक्झिक्युटिव्ह इंजिनियरकडे किंवा, असे अर्ज घेण्याचा त्याने ज्यास अधिकार दिला असेल त्या अंमलदाराकडे सादर केला पाहिजे. तो हाती नेऊन द्यावा, स्वतः जातीने सादर करावा किंवा टपालाने पाठविण्यात यावा.

३. ज्या हंगामात अर्जदारास पाणीपुरवठ्याची आवश्यकता असेल त्या हंगामाकरिता हा अर्ज तीन महिने आगाऊ दिला पाहिजे.

४. (१) एकमेव खातेदार किंवा सर्व संयुक्त खातेदार, किंवा (२) एकमेव वरिष्ठ धारण करणारा किंवा सर्व संयुक्त वरिष्ठ धारण करणारे, किंवा (३) मंजूर झालेल्या मुदतीत जमीन भिजवून मशागत करण्याचा ज्यास हक्क असेल असा इसम, किंवा (४) अशी मंजुरी मिळण्यास या इसमापैकी कोणत्याही इसमाच्या वतीने योग्य रीतीने अधिकार मिळाला असेल असा इसम याशिवाय कोणत्याही इतर इसमाने कोणत्याही जमिनीतील पिकांना पाणी मिळण्याकरिता केलेला अर्ज साधारणपणे मंजूर केला जाणार नाही.

५. अर्जदाराने संबंध असलेल्या एका किंवा अनेक सव्हे नंबरातील जमिनीचा नकाशा अर्जाबरोबर सादर केला पाहिजे.

६. अर्जाच्या नमुन्यातील दुसऱ्या परिच्छेदात अर्जदाराने जमिनीवर असलेला आपला हितसंबंध कोणत्या प्रकारचा आहे किंवा जमीन भिजवून मशागत करण्याकरिता पाण्याची मंजुरी मिळण्यासाठी अर्ज करण्याचा अधिकार आपणास कसा पोहोचतो याविषयी लिहिले पाहिजे. तसेच सदरहू नमुन्यातील तिसऱ्या परिच्छेदात (मिळालेली) मंजुरी ज्या इसमाच्या नावावर व पत्त्यावर कळवावयाची असेल त्या इसमाचे नाव व त्याचा पत्ता नमूद केला पाहिजे.

७. पूर्णपणे भरलेला अर्ज पोहोचल्यावर आणि अर्जासंबंधी योग्य चौकशी केल्यानंतर एक्झिक्युटिव्ह इंजिनियरस, शेतकऱ्याचे संबंध असलेल्या पाण्यावरील विद्यमान हक्क लक्षात घेऊन, अर्जातील विनंती पूर्णतः अगर अंशतः मंजूर करण्याचा किंवा तो नाकारण्याचा अधिकार आहे. अर्ज मंजूर करण्यात येईल त्या बाबतीत पाण्याचा उपयोग करण्याकरिता अर्जदाराला पास दिला पाहिजे. असा पास त्यात निदिष्ट केलेल्या मुदतीपुरताच फक्त व्यवहारोपयोगी असेल. अर्ज नाकारण्यात येईल त्या बाबतीत, अर्जाची दुसरी प्रत, तो नाकारल्याची कारणे नमूद करून, अर्जदाराकडे परत केली पाहिजे.

८. जेथे कालव्याचे पाणी कपटाने घेतले जाण्याची भीती असेल तेथे पिके काढण्याकरिता पाणी पुरविण्यास मंजुरी देण्याचे नाकारले पाहिजे.

शर्ती

१. कांद्याचे पीक धरून खाद्यपिके व वैरणीची पिके काढण्यासाठी पाण्याचा मोफत उपयोग करण्याकरिता मंजुरी देण्यात येईल.

२. अर्जदाराने आपल्या जमिनीत पाणी घेण्यासाठी स्वतःच्या खर्चाने व जबाबदारीवर एक किंवा अनेक पाट काढले पाहिजेत.

३. सन १९३४ च्या मुंबईच्या कालव्याबाबत कानूनाचा भाग ९ या अन्वये पुरविलेल्या पाण्यावर काढलेली पिके, सदरहू अॅक्ट अन्वये अन्य रीतीने पुरविलेल्या पाण्यावर काढलेल्या सर्व पिकांपासून सर्व ठिकाणी निदान ५० फूट अंतरावर असली पाहिजेत.

४. अर्जदाराने त्याच्या जमिनीकरिता मंजूर केलेले पाणी वापरीत असताना, पाण्याचा निचरा होण्याच्या नैसर्गिक व्यवस्थेत किंवा कृत्रिम पाटात हस्तक्षेप करता कामा नये.

५. जेव्हा जमीन भिजविण्यासाठी कालव्यातून काढलेले पाट खेचून वर काढलेल्या पाण्याच्या (लिफ्ट) पाटांना समांतर असतील तेव्हा, त्या पाटांच्या आतील काठांच्या बाहेरील कडांच्या दरम्यान किमान १५ फूट रूंदीचा एक लागवड न केलेल्या कोरड्या जमिनीचा पट्टा असला पाहिजे.

६. जेव्हा खेचून काढलेल्या पाण्याचे (लिफ्ट) पाट कालवा ओलांडून जात असतील तेव्हा पाणी कालव्यावरून वाहून नेण्याची सोय, कॅनॉल ऑफिसराचे पूर्ण समाधान होईल अशा रीतीने पक्के बांधकाम करून व कालव्यावर नळ टाकून केली पाहिजे.

७. जेव्हा पॅपिंग प्लॅटच्या साहाय्याने पाणी वापरण्याची परवानगी देण्यात आली असेल तेव्हा पॅपिंगची किंवा पाणी बाहेर काढण्याची (टेक ऑफ) व्यवस्था कालव्याच्या कडेच्या हद्दीपासून किंवा पाटांच्या कडेच्या हद्दीपासून ३०० फुटांच्या त्रिज्येबाहेर असली पाहिजे.

८. ज्या क्षेत्राकरिता एक्झिक्युटिव्ह इंजिनियरने पाणी मंजूर केलेले असेल ते क्षेत्र एका नकाशावर दाखविले पाहिजे आणि त्यावर अर्जदाराने सही केली पाहिजे.

९. पाणी न मिळाल्यामुळे किंवा कमी मिळाल्यामुळे झालेल्या पिकांच्या नुकसानीबद्दल नुकसानभरपाई मिळण्याकरिता केलेला कोणताही दावा विचारात घेतला जाणार नाही.

१०. पाणी वापरण्यासाठी मिळालेल्या पासाची मुदत संपल्यावर किंवा पाणी वापरण्यासाठी पास मिळविल्याशिवाय पाणी वापरल्याबद्दल किंवा उपरनिदिष्ट शर्तीपैकी कोणत्याही शर्तीचा भंग केल्याबद्दल अर्जदारावर पाण्याबद्दल बसविण्याजोगी संबंध पट्टी आकारण्यात येईल आणि त्याशिवाय, सन १८७९ चा मुंबईचा इरिगेशन अॅक्ट आणि त्याअन्वये केलेल्या कानूनांच्या ठरावांअन्वये केलेल्या शिक्षांना तो पात्र असेल.

११. सदरहू पासाअन्वये लागवडीखाली आणलेल्या क्षेत्रांना दुसऱ्या कोणत्याही कालव्याचे पाणी देता कामा नये किंवा त्या क्षेत्राकरिता ते वापरता कामा नये.

१२. पिकांसाठी मंजूर केलेल्या क्षेत्रापेक्षा पिके काढलेल्या जादा क्षेत्रावर कालव्याचे पाणी वापरल्याबद्दल बसविण्याजोगी संबंध पाणीपट्टी आकारण्याचा अधिकार आहे आणि त्याशिवाय अनधिकृत रीतीने पिकांसाठी पाण्याचा उपयोग करण्याबद्दल सन १८७९ चा मुंबईचा इरिगेशन अॅक्ट आणि त्याअन्वये केलेले कानूनांच्या ठरावांअन्वये केलेल्या शिक्षांना अर्जदार पात्र असेल.

१३. अर्जदाराने त्याचा अर्ज मंजूर होण्यापूर्वी आणि त्याला पास दिला जाण्यापूर्वी पिकांसाठी पाणी घेता कामा नये.

FORM VIII

Form of Security Bond

Whereas resident of , Taluka , District

has applied for a supply of water to irrigate the land hereinbelow described, namely :—

Village	Taluka	Survey No.	Pot No.	Area of field to be irrigated	Name of crop or block	Period of irrigation
				A. g.		

and whereas he has been required to furnish security for the payment of water rates and other charges :—

We, the undersigned, resident of Taluka, District, and resident of Taluka, District, do hereby declare ourselves sureties for the abovementioned that he shall duly pay at the prescribed time or times every rate, charge, penalty or other sum whatsoever that shall become due from him in respect of the supply of water granted to him in pursuance of his said application; and in case of his making default therein we, each of us, for himself, his heirs, executors and administrators agree to pay to the Governor of Bombay such sum not exceeding in the aggregate rupees as shall be demanded of us, or of either of us, or of any heir, executor, or administrator of either of us, on account of any such rate, charge, penalty or other sum aforesaid;

and we do further agree that the amount of any such rate, charge, penalty or other sum aforesaid may, if necessary, be recovered from either of us or from any heir, executor or administrator of either of us, as if the same were an arrear of land revenue due from us, or either of us, to Government.

Dated and signed this day of 19 In the presence of (1)

and (2) _____ (Signature of surety)

(1) _____ (Signature of witness).

(2) _____ (Signature of witness). _____ (Signature of surety)

FORM IX

Whereas I resident of Taluka District
have applied for a supply of water from the canal to irrigate the
land hereinbelow described, namely :—

Village	Taluka	Survey No.	Pot No.	Area of field to be irrigated	Name of corp or block	Period of irrigation
				A. g.		

and whereas I have been required to furnish security for the payment of water rates and other charges in respect of the water supply.

I do hereby mortgage to the Government of Maharashtra the land hereinbelow, described to which I am absolutely entitled free of any encumbrance and of which I am the rightful owner.

District	Taluka	Village	Survey No.	Pot No.	Area of holding in the Survey No.	Remarks
					A. g.	

and I also hereby agree for myself, my heirs, executors and administrators that in the event of my failure, to pay any part of the said water rate and other charges at the appointed time and place the Government of Maharashtra shall be at liberty to cause the said land to be sold and sale proceed to be applied in payment of the, whole amount that may be outstanding from me at the time of sale in respect of the said supply of water.

And I further agree that it shall be lawful for the Government of Maharashtra to cause the said land to be sold without the intervention of the Court under section 69 of the Transfer of Property Act, 1882, in case the said water rate and other charges or any part thereof have not been paid by me within 3 months from the date on which a written notice is served on me after the later rate and other charges have become due.

Dated and signed this _____ day of _____ 19____ (Signature)
in the presence of (1 Name) _____ and (2 Name) _____
(Signature of witness) (1) _____
(Signature of witness) (2) _____

FORM IX-A

Whereas, I....., resident of.....
Taluka....., District..... have applied for
a supply of water from the..... canal to irrigate the land
hereinbelow described, namely :—

Village	Taluka	Survey No.	Pot No.	Area of field to be irrigated	Name of crop or block	Period of Irrigation
				A. g.		

and whereas, I have been required to furnish security for the payment of water rates
and other charges in respect of the water supply.

Now therefore, I do hereby mortgage to the Governor of Maharashtra the land
here inbelow described (hereinafter called the said land) to which I am absolutely
entitled and of which I am the rightful owner :—

District	Taluka	Village	Survey No.	Pot No.	Area of holding in the Survey No.	Remarks
					A. g.	

I do hereby declare that I am a member of..... Society
which is a resource society within the meaning of section 24AA of the Bombay
Co-operative Societies Act, 1925 (Bom. VII of 1925) and I have taken a loan of
Rs. from the said society and by a declaration made by

me under clause (i)/(ii) of that section I have created a charge on the said land
for the payment of the said amount of loan and for all future advances which the
said Society may make to me determine by the Society together with interest on
such as such member subject to the maximum amount of Rs.
as determined by the Society together with interest on such amount of the loan
and advances. I hereby agree for myself, my heirs, executors and administrators
that in the event of my failure, to pay any part of the said water rate and other
charges at the appointed time and place the Government of Maharashtra shall
be at liberty to cause the said land to be sold and the sale proceeds to be applied
in payment of the whole amount that may be outstanding from me at the time
of sale in respect of the said supply of water.

And I further agree that it shall be lawful for the Governor of Maharashtra to
cause the said land to be sold without the intervention of the Court under section
69 of the Transfer of Property Act, 1882, in case the said water rate and other
charges or any part of them have not been paid by me within three months from
the date on which a written notice is served on me after the water rate and other
charges have become due.

Dated and signed this day of 19.....

(Signature)

in the presenc of—

(1) (name)

and

(2) (Name)

(Signature of witness)—

(1)

(Signature of witness)—

(2)

FORM X

Application for exemption from water rate for block
To The Executive Engineer, Division.
I, resident of Taluka in the
District, make this application for stopping my supply of water from the
canal and exemption of water rates in respect of the block
described below :—

Name of village गावाचे नाव	Channel No. पाटाचा नंबर	Outlet No. दरवाजाचा नंबर	Survey No. सर्वे नंबर	Pot No. पोटा नंबर	Block No. ब्लॉक नंबर	Plot No. प्लॉट नंबर	Reference to the No. of sanctioned block application मंजूर केलेल्या ब्लॉकचा अर्ज नंबर	Area of sanctioned block ब्लॉकातील मंजुरीचे क्षेत्र	Area for which exemption is required ज्या क्षेत्रास माफी पाहिजे ते क्षेत्र	The year for which and brief reasons why exemption is required माफीचे वर्ष व माफी का पाहिजे त्याची थोडक्यात कारणे
1	2	3	4	5	6	7	8	9	10	11
								A. g. ए. गु.	A. g. ए. गु.	

2. Name and address of the person to whom and the manner in which the order on this application should be delivered are :—
Date 19 Signature or left hand thumb impression of the applicant.

Signature of the witness

Forwarded for sanction as follows :—

(1) Area to be exempted—A. G. (2) Period—From To
Dated 19 Sub-Divisional Officer, Division.
Sanctioned. Date 19 Executive Engineer, Division.

कालवा. ब्लॉकातील पाणीपट्टीची माफी मिळव्यावित्या अर्जदाराचे अर्ज केल्यास वरून ती मंजूर झाल्याबद्दल त्यास समज मावाचे नाव अर्जदाराचे नाव अर्जाची तारीख	माफीच्या मंजूर केलेल्या प्लॉटचे एकूण क्षेत्र	मंजूर केलेल्या माफीची मुदत	पोटा नंबर	प्लॉट नंबर	लॉक नंबर	माफीच्या प्लॉटचे एकूण क्षेत्र	पासून पर्यंत	तारीख	कॅनॉल ऑफिसर.	माफीसाठीचा अर्ज पोहोचल्याची पावती माफीचे वर्ष माफी मागितलेल्या ब्लॉकचे सर्व्हे नंबर अर्ज पोहोचल्याची तारीख

INSTRUCTIONS

1. This form is to be used whenever necessary for applying for stoppage of supply of water to the whole or part of a sanctioned block and exemption from water rates in respect of same.

2. The application need not be submitted in duplicate. The application should be submitted to the Executive Engineer or to any officer authorised by him to receive such applications. It may be sent by hand, presented personally or sent by post.

3. When an order is passed counterfoil A of the form will be sent to the applicant with the order recorded on it.

4. The applicant should note in the space provided at No. 2 on the form the name and address of the person to whom the said order is to be given and whether the order should be sent by post or delivered from any canal office, or kept at any office to be called for, postal intimation being sent when it is ready for delivery.

5. This application must be submitted before the dates specified below :—

(i) For the first year of the block period—Within one month from the date of sanction.

(ii) For subsequent years of the block period—

(a) In respect of sugarcane, fruit and garden blocks—Before 15th November preceding the year beginning from February 15th for which exemption is required.

(b) In respect of two-season blocks—Before 15th September preceding the cold weather season for which exemption is required.

6. When exemption from water rate is granted subsequent permission to irrigate the whole or part of the block area so exempted shall, if water is available, be given only at $1\frac{1}{2}$ times the block gate in the case of sugarcane blocks, $1\frac{1}{2}$ times the rate prescribed for the cold weather season in the case of two-season blocks, and $1\frac{1}{2}$ times the rates prescribed for the cold weather season in the case of fruit and garden blocks. Subsequent irrigation of seasonal and hot weather seasons in respect of sugarcane blocks only will however be permitted—at or two season crops in the exempted area of sugarcane blocks only will however be permitted—at the sanctioned rates provided that an application form VIII is submitted before the dates fixed in accordance with Canal rule 5 (1) of the Bombay Canal Rules, 1934.

BOMBAY IRRIGATION RECORD OF RIGHTS RULES, 1918

G. N., R. D., No. 5159, dated 20th April 1918 (B. G. Pt. I)

In exercise of the powers conferred by section 89 of the Bombay Irrigation Act, 1879 (Bom. VII of 1879) the Governor in Council is pleased to make the following rules namely :—

1. (1) These rules may be called the Bombay Irrigation, Record of Rights Rules, 1918.

(2) In these rules—

(a) "Canal Officer" when mentioned with reference to any matter in the rules, means a Canal Officer duly empowered to act in such matter.

(b) "the Act" means the Bombay Irrigation Act, 1879.

2. (a) The Record of Rights prepared under section 76 of the Act shall be in Form of the Record Form 1.

(b) It shall be prepared separately for each village.

(c) A map shall be attached to each Record and such map shall be either the ordinary printed village map or a map specially prepared for the purpose, which shall exhibit the source of irrigation, the method of catchment or supply, the line of overflow, the lines of distribution and the character of the outlets, sluices or other means of regulation and distribution.

Preparation of a preliminary Record

3. Under the instruction of the Canal Officer a preliminary Record and map shall be prepared in the form prescribed in rule 1 according to the information obtained under section 76 (1) of the Act and from local inquiry. Each entry shall be verified by the Canal Officer on the land itself after due notice has been given to the parties concerned.

Publication and inspection of the preliminary Record

4. The preliminary Record and map shall be kept open to inspection in the Chavdi or other place in the village used as a Chavdi for a period of 3 months from the date on which the village officer shall notify by beat of drum in the village that the Record and map are open to such inspection.

Objections and appeals

5. (a) Any objection to any entry in the preliminary Record shall be made before the expiry of the period prescribed in rule 4 to the village accountant or other officer authorised by the Canal Officer in this behalf.

(b) Such officer shall record the substance of each objection on a separate sheet of paper and append it to the preliminary Record; provided that where the same objection is made by one person or body of persons in respect of several entries or where several persons jointly make the same objection, the objection may at the discretion of the officer be recorded on one sheet.

(c) The Canal Officer shall make a summary inquiry into all such objections and pass orders upon them. When any competent civil court has adjudicated upon the dispute, the Canal Officer's decision shall follow such adjudication. Otherwise his decision shall follow the present actual enjoyment and possession of the rights claimed.

(d) An appeal will lie from the decision of the Canal Officer to Assistant or Deputy Collector in charge of the taluka.

(e) the parties shall be informed in writing of the decision passed on an objection or in appeal and the fact of such communication shall be recorded in the proceedings.

Preparation and publication of the final Record

6. (a) After the objections, if any, have been decided, the preliminary Record and map shall be revised in accordance with the decisions passed on the objections or in appeal and shall be submitted to the sub-divisional officer for approval.

(b) After approval a fair copy of the Record and map shall be prepared as the Record under the Act and shall be published as provided in section 81 of the Act by beat of drum.

(c) The fact of such publication shall be certified on the Record.

Custody of the Record

7. The Record and map shall be kept in the village records till it is rewritten and thereafter shall be recorded in the taluka record room for a period of 30 years.

Revision of the Record

8. (a) The village accountant shall make an entry in the diary of mutations, to be kept in Form 2, respecting any mistake or change in the particulars contained in the Record or the result of any suit or proceeding referred to in Section 83 affecting the Record as soon as such fact comes to his notice.

(b) The canal officer shall read out the entry to the parties concerned, and after satisfying himself of the correctness of the entry and inspecting the ground when such inspection is relevant, and disposing of any objection raised by the parties and after the decision of any appeal that may be made shall revise and certify the entry in Form 2 in accordance with the final decision.

(c) Certified entries in Form 2 shall be incorporated in the Record by scoring out the original entry so as not to render it illegible and by writing the correction beneath the cancelled particulars. The number of the entry in Form 2 shall be noted against the revised entry.

(b) The revised entry shall be signed by the canal Officer and shall be published in the manner prescribed in rule 6.

Rewriting of the Record.

9. (a) When in view of the condition of the Record or the number of corrections the Canal Officer is of opinion that the Record should be rewritten, he shall certify all entries up-to-date in Form 2 and incorporate them in Form 1.

(b) A fair copy shall then be prepared, omitting all cancelled entries but including references to the dairy of mutations.

(c) This copy, after being compared and certified by the Canal Officer shall be the Record for the purposes of the Act and rules.

(d) The diary of mutations shall be recorded in the taluka record room and kept for 30 years.

10. Copies of extracts from the Record shall be given by the Village Accountant in accordance with, and at the same fees as are prescribed in, the rules for the time being in force for the grant of extracts from the Record of Rights maintained under the Bombay Land Revenue Code, 1879. Copies of the map shall be given by the canal officer on payment of the fees prescribed for copies of maps granted under that code.

FORM 1

(See Rule 2)

Irrigation Record of Rights.

Village Taluka

work.

(Here enter description of work and any memorable facts such, as source of water supply and manner of distribution, height of water, manner of rotation, procedure regarding disputes etc.)

Survey number and Sub-Division	Area under Irrigation	Water assessment or water share of the consolidated assessment	Right of the land to water and condition upon which it is enjoyed	In what way water is actually taken.	Remarks
(1)	(2)	(3)	(4)	(5)	(6)

(Signature and title of Canal Officer preparing the Record)

FORM 2

(See Rule 8)

Diary of mutations in the Irrigation Record of Rights

Serial Number	Nature of change or correction	Survey No. and Hissas affected	Notes of enquiry, admission, and orders of canal officer, or appellate orders, in disputes.
(1)	(2)	(3)	(4)

THE BOMBAY CONSTRUCTION OF WATER COURSES RULES, 1968

G. N., I. and P. D., No. BIA. 1166/4365-(i)-I-(5), dated 1st February 1969 (M. G., Pt. IV-B, p. 231)

In exercise of the powers conferred by section 70 of the Bombay Irrigation Act, 1879 (Bom. VII of 1879), the Government of Maharashtra hereby makes the following rules, namely :—

1. *Short title*—These rules may be called the Bombay Construction of Water Courses Rules, 1968.

2. *Definitions*—In these rules, unless the context otherwise requires—

- (1) "Act" means the Bombay Irrigation Act, 1879;
- (2) "Form" means a Form appended to these rules;
- (3) "holder" means a person whose land receives or would receive the benefit of a water-course constructed or to be constructed under a scheme made under the Act, irrespective of the fact whether or not such benefit is availed of;
- (4) "section" means section of the Act.

3. *Manner of obtaining consent of holders under section 25-AA*—(i) Whether an authorised Canal Officer proceeds to prepare a draft scheme for the construction of a water-course for the supply of Irrigation water to the best advantage of any area under section 25-AA, every holder of land within such area shall be served with a notice in Form A by the authorised Canal Officer.

(ii) The holder shall (unless he requires any information pertaining to the draft scheme which information the authorised Canal Officer shall give) within fifteen days from the date of service of the notice, inform the authorised Canal Officer in writing, whether or not he consents to the preparation of such scheme. If no intimation in writing is received within such period, the holder shall, unless the contrary is proved, be deemed to have consented to the preparation of the scheme.

Explanation.—In computing the period of fifteen days, the time required for obtaining the information shall be excluded.

4. *Apportionment of cost of land and of construction of water course, amongst holders*.—For the purpose of apportioning the cost of acquisition of land and of the construction of a water-course amongst the holders included in a scheme, the extent of liability of each holder shall be limited to the area commanded by the water-course, and cost shall be calculated by the authorised Canal Officer in proportion of the area so commanded.

5. *Manner of publication of draft scheme under section 25-AA (3)*.—(1) The authorised Canal Officer shall, immediately on the publication of a draft scheme in the *Official Gazette*, display or cause to be displayed copies of such draft scheme on the notice board at the following places.—

- (i) the office of the authorised Canal Officer.

(ii) the village chawdi, and if there is no village chawdi in a village the village school or any other public place suitable for display of copies of the draft scheme.

(iii) the office of the village panchayat, if any, for the village within the revenue limits of which the lands referred to in the draft scheme are situate.

(iv) the office of the Mamlatdar or Mahalkari within whose jurisdiction such lands are situate.

(v) the office of each sub-division of Irrigation and Power Department within the jurisdiction of which such lands are situate.

(vi) the office of the Zilla Parishad or Zilla Parishads of the district or districts in which such lands are situate.

(2) The authorised Canal Officer shall also send a copy of the draft scheme to the Gram Sevak of each of the villages within the revenue limits of which the lands mentioned in the draft scheme are situate and, the Gram Sevak shall give due publicity to the draft scheme in the village by beat of drums.

(3) The notice calling for suggestions or objections to the draft scheme referred to in sub-section (3) of section 25-AA shall be in Form B and shall be displayed along with the draft scheme.

6. *Manner of publication of final scheme.*—The provisions of rule 5 for the publication of a draft scheme shall *mutatis mutandis* apply for the publication of the final scheme under sub-section (4) of section 25-AA.

7. *Manner of constructing water-courses under scheme.*—Before any water-course is constructed by any holder, he shall obtain details of the construction thereof from the authorised Canal Officer or the Sectional Officer, Irrigation and Power Department; and thereafter the water-course shall be so constructed that the dimensions and the bed-slopes of the water-course shall be such as are adequate for the easy passage of water through the water-course to all the fields through which water is supplied from the canal.

8. *Provision in relation to notice under section 25-AF.*—(i) The notice requiring each holder to construct a water-course referred to in sub-section (1) of section 25-AF shall be in Form C.

(ii) Every such notice shall be served on a holder by registered post, or by hand delivery either to the holder himself or to any adult member of his family residing with him.

(iii) Where a notice is delivered by hand the signature or thumb impression of the person on whom the notice is served shall be taken in token of the service of the notice.

(iv) If the holder cannot be found or the authorised Canal Officer is satisfied that he is evading service or that he refuses to take the notice, the notice may be served by affixing a copy thereof on some conspicuous part of the house in which the holder ordinarily resides.

9. *Form of certificate under section 25-AG.*—The certificate to be issued under clause (a) of sub-section (1) of section 25-AG to all holders in the final scheme shall be in Form D.

10. *Payment of cost of acquisition of land and of cost of construction of water-course.*—(a) (i) Any payment in lump sum for cost of acquisition of land under sub-section (1) of section 25 AF shall be made within a period of six months from the date of notice in Form C under sub-section (1) of that section.

(ii) Any payment in lump sum for cost of construction of water-course under sub-section (1) of section 25-AH shall be made within a period of six months from the date of notice under section 25-AH. The notice shall be in Form E.

(b) Where the cost is paid in instalments, it shall be paid in instalments not exceeding five, together with simple interest at $4\frac{1}{2}$ per cent per annum, each payment of instalment being made before the 31st March every year.

11. *Recovery and refund.*—If the cost of acquisition of land according to the award is found to be more or less than the sum demanded from the holder in the notice in Form C served under section 25-AF, the authorised Canal Officer, shall take steps to recover the excess amount from or to refund the excess payment to, the holder, as the case may be. A notice in Form F shall be served upon the holder to recover the excess cost of acquisition of the land. A notice in Form C shall be served upon the holder to receive payment of the amount paid in excess.

FORM A

[See rule 3 (1)]

Notice for obtaining consent of holders of land

To

Shri.....

Address

This is to inform you that although water for irrigation is available in (here specify the area) from (mention here the name of the canal, distributary, outlet) nevertheless lands capable of being irrigated therefrom are not being

are prevented from being (herein specify

irrigated for the the reason and that in the opinion of the undersigned, in the interest of general public, it is necessary to irrigate the lands from the canal in the said area and for that purpose, it is proposed to prepare a draft scheme providing for the construction of a water-course for the supply of irrigation water to the best advantage in such area, as provided by section 25-AA of the Bombay Irrigation Act, 1879 (Bom. VII of 1879), as amended by the Irrigation Laws (Amendment) Act, 1964 (Mah. XLVII of 1965).

You are requested to inform the undersigned in writing, within fifteen days from the date of receipt of this notice, whether or not, you consent

to the preparation of the draft scheme. If no intimation in writing is received within the said period, you shall, unless you prove to the contrary, be deemed to have consented to the preparation of the scheme.

Any information about the proposed scheme which you may require for the purpose of giving your consent, can be had from the office of the undersigned or the office of the Sub-Divisional Officer,..... Irrigation Sub-Division.

Place :

Date

Signature,
Authorised Canal Officer,

FORM B

[See rule 5 (3)]

Notice calling for suggestions and objections to the draft scheme

Whereas, the draft scheme for the construction of a water-course through village/villages in the taluka of district is published in Part of the *Maharashtra Government Gazette*, dated the page under Notification No. dated issued by the all the holders of lands and all persons affected by the scheme are hereby called upon to submit to the undersigned in writing their suggestions or objections if any, in respect of the draft scheme, within *one month* from the date of this notice.

Place :

Date

Signature,
Authorised Canal Officer

FORM C

[See rule 8 (1)]

Notice for construction of water-course

To

Shri.....

Address

Whereas, in accordance with the final Scheme for the construction of water-course through village/villages in the taluka of district which is published in part.....

of the *Maharashtra Government Gazette*, dated under Notification No. dated the issued by the land specified in that scheme are acquired in accordance with the provisions of section 25-AC of the Bombay Irrigation Act, 1879.

And whereas, I have been put in possession of the lands so acquired.

And whereas, you have been mentioned in the said scheme as the holder of the following land, that is to say—

Village	Survey No. or Nos.	Area in acres affected by the proposed water-course
---------	--------------------	---

Now, therefore, in pursuance of the provisions of section 25-AE of the said Act, you are hereby called upon—

(1) to construct within the period specified in the final Scheme i, e. within and in the manner specified therein, the water-course to the extent to which it passes through your lands under that Scheme; and

(2) to pay Rs. as a sum payable by you in accordance with the apportionment of the cost of acquisition of land made under the said scheme, you may pay the amount either—

(i) in lump sum within a period of six months from the date of this notice; or

(ii) by instalments not exceeding five with simple interest at $4\frac{1}{2}$ per cent. per annum before the 31st day of March every financial year.

If you desire to pay the amount in instalments, you are requested to inform me accordingly, in writing within one month from the date of this notice.

Place :

Date :

Signature,
Authorised Canal Officer.

FORM D

(See rule 9)

Certificate for completion of construction of water-course

Certified that the construction of the water-course through survey numbers of village/villages mentioned in the final scheme which is published in Part of the *Maharashtra Government*

Gazette, dated the at page under
 Notification No. dated 19 issued by the
 has been completed on 19
 by the holder/holders of the land/lands by the Government.

Place :

Date :

Signature,
 Authorised Canal Officer.

FORM E

[See rule 10 (a) (ii)]

To

Shri.....

Address

Whereas, in accordance with the notice in Form C, dated
 (under section 25-AE), you were called upon to construct within the period
 specified in the final scheme i. e., within the water-
 course to the extent to which it passes through your lands;

And whereas, you have not constructed the said water-course to the extent
 so specified :

And whereas, on expiry of the period specified in the final scheme, the
 said water course to the said extent has been constructed by Government.

Now, therefore, in pursuance of the provisions of sub-section (1) of section
 25 AH of the said Act, you are called upon to pay Rs.
 as a sum payable by you as the cost of construction of the water-course
 under the said scheme.

You may pay the amount either—

(i) in lump sum within a period of six months from the date of
 this notice, or

(ii) by instalments not exceeding five with simple interest at $4\frac{1}{2}$ per
 cent, per annum before the 31st March every year.

If you desire to pay the amount in instalments, you are requested to
 inform me accordingly, in writing, within one month from the date of
 this notice.

Place :

Date :

Signature,
 Authorised Canal Officer.

FORM F

(See rule 11)

To

Shri.....

Address

Whereas, the cost of acquisition of land according to the award is found
 to be more than the sum mentioned in the notice in Form C, dated,
 as payable by you in accordance with the apportionment
 of the cost of acquisition of land made under the final scheme;

Now, therefore, you are called upon to pay Rs. as a
 sum payable by you in accordance with the apportionment of the excess
 cost of acquisition of land.

You may pay the amount in one lump sum within six months from the
 date of this notice, if you so desire.

If you desire to pay the sum in instalments, you are requested to intimate
 to me accordingly in writing within one month from the date of this notice.
 The payment can be made in instalments not exceeding five with simple
 interest at $4\frac{1}{2}$ per cent. per annum but will have to be made before the 31st
 March every year.

Place :

Date :

Signature,
 Authorised Canal Officer.

FORM G

(See rule 11)

To

Shri.....

Address

Whereas, the cost of acquisition of land according to the award is found
 to be less than the sum mentioned in the notice in Form C, dated.....
 as payable by you in accordance with the apportionment of the
 cost of acquisition of land made under the final scheme;

Now, therefore, you are called upon to receive payment of Rs.
 as a sum payable to you in accordance with the apportionment of the
 reduced cost of acquisition of land.

Place :

Date :

Signature,
 Authorised Irrigation Officer.